

## AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

BPA NO.

1. CONTRACT ID CODE  
TIB-2021-C-0001PAGE OF PAGES  
1 28

|                                                                                                                                                                      |                   |                                                                                                         |                                                               |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|---------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|
| 2. AMENDMENT/MODIFICATION NUMBER<br>0001                                                                                                                             | 3. EFFECTIVE DATE | 4. REQUISITION/PURCHASE REQ. NUMBER<br>N/A                                                              | 5. PROJECT NUMBER (if applicable)                             |
| 6. ISSUED BY<br>FEDERAL RETIREMENT THRIFT INVESTMENT BOARD (FRTIB)<br>77 K Street NE, Suite 1000<br>Washington DC 20002                                              | CODE              | 7. ADMINISTERED BY (If other than Item 6)<br>FRTIB<br>77 K Street, NE Suite 1000<br>Washington DC 20002 | CODE                                                          |
| 8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)<br>STATE STREET GLOBAL ADVISORS TRUST COMPANY<br><br>1 IRON ST<br><br>BOSTON MA 02210 |                   | (X)                                                                                                     | 9A. AMENDMENT OF SOLICITATION NUMBER                          |
| CODE 7VEX1                                                                                                                                                           |                   |                                                                                                         | 9B. DATED (SEE ITEM 11)                                       |
| FACILITY CODE                                                                                                                                                        |                   | (X)                                                                                                     | 10A. MODIFICATION OF CONTRACT/ORDER NUMBER<br>TIB-2021-C-0001 |
|                                                                                                                                                                      |                   |                                                                                                         | 10B. DATED (SEE ITEM 13)<br>10-21-2020                        |

## 11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☐ is not extended. Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing Items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required) N/A  
See CONTINUATION Page

## 13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS, IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.

|                                     |                                                                                                                                                                                                                       |
|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE                           | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.                                                                      |
| <input type="checkbox"/>            |                                                                                                                                                                                                                       |
| <input type="checkbox"/>            | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| <input checked="" type="checkbox"/> | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF: FAR 43.103(a)                                                                                                                                |
| <input type="checkbox"/>            | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

**E. IMPORTANT:** Contractor ☐ is not, ☒ is required to sign this document and return ONE (1) copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

As a result of this modification, the following documents are incorporated:

- With Section J, List of Attachments, Attachment Number 003, Investment Management Services Agreement (IMSA) and cross reference IMSA Attachment 10., Secure File Transfer Protocol (SFTP) Guidelines, Pages 1-4 with Appendix A-E Dated: 04/13/2021 and Delegation, Authorized Initiators and Verifiers/Contact List Exhibits Dated: 04/08/2021
  - With Section J, List of Attachments, Attachment Number 005, FRTIB Error Remediation Services and cross reference IMSA Attachment 11., Investment Manager Valuation Error Remediation Procedures, Document Number OI.134, Pages 1-9 Dated: 09/30/2020
- Additionally, the following FRTIB administrative contract updates are applied:
- Section G, G.1.1. Contracting Officer, Page 28 (see continuation block 14., page 2)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                                          |                                                                                                                                                       |
|----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|
| 15A. NAME AND TITLE OF SIGNER (Type or print)<br>(b) (6) | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)<br>SUSAN CROWDER<br>Chief Acquisition Officer                                              |
| 15. (b) (6)<br>(Signature of person authorized to sign)  | 16B. UNIT OF AMERICA<br>SUSAN CROWDER<br>Digitally signed by SUSAN CROWDER<br>Date: 2021.04.13 19:55:35 -04'00'<br>(Signature of Contracting Officer) |
| 15C. DATE SIGNED<br>April 13, 2021                       | 16C. DATE SIGNED<br>April 13, 2021                                                                                                                    |

STANDARD FORM 30 Continuation, 14. DESCRIPTION OF AMENDMENT/MODIFICATION

Remove: Mr. Matthew Hamilton

Add: Tiffany Traynor

(b) (6)

E-Mail: [Tiffany.Traynor@frib.gov](mailto:Tiffany.Traynor@frib.gov)

4. Section G, G.2.1. Contracting Officer Representative (COR), Page 29

Remove Alternate COR: Mr. Stephen Deutsch

Remove Alternate COR: Mr. Anthony Whitten

Add Alternate COR: Jihyun 'Jonathan' Ahn

E-Mail: [Jihyun.Ahn@frib.gov](mailto:Jihyun.Ahn@frib.gov)

Total Price: UNCHANGED

Otherwise unilateral routine administrative updates included for efficiency.

**STATE STREET GLOBAL ADVISORS  
AGREEMENT ON TRADING AND OPERATIONAL GUIDELINES FOR  
THE FRTIB/THRIFT SAVINGS PLAN**

Effective Date: 04/13/2021

Reference is made to the separate trust account (the "SSGA Trust Account"), managed by State Street Global Advisors Trust Company ("State Street") on behalf of the Federal Retirement Thrift Investment Board (the "Board"), that holds assets of the Thrift Savings Plan (the "Plan").

The trading and operational guidelines described in this agreement (the "Guidelines") outline the requirements of the daily trade activity file for the SSGA Trust Account, and the implementation of automated trade instructions (each, an "Instruction" or collectively, "Instructions") issued by the Board to State Street with respect to the SSGA Trust Account. Transaction security procedures that State Street will implement and follow are described on Appendix D. Additional terms and conditions governing these Guidelines are set out on Appendix E.

In accordance with Section 16 of that certain Investment Management Services Agreement effective as of October 21, 2020, the Board and State Street have each caused this agreement to be signed by their respective officers or duly authorized representatives as of April 13, 2021.

STATE STREET GLOBAL ADVISORS TRUST  
COMPANY

By: \_\_\_\_\_  
Name: \_\_\_\_\_  
Title: \_\_\_\_\_

(b) (6)

FEDERAL RETIREMENT THRIFT  
INVESTMENT BOARD

SUSAN

By: CROWDER

Name: Susan C. Crowder  
Title: Chief Financial Officer (CFO)  
With respect to the THRIFT SAVINGS PLAN

Digitally signed by  
SUSAN CROWDER  
Date: 2021.04.13  
19:56:30 -04'00'

## **A. Trade File**

To the extent the Board wishes to transmit trade order instructions to State Street, the Board shall send SSGA via standard File Transfer Protocol ("FTP") a secure file delivery mechanism a file of trade activity regarding the SSGA Trust Account ("Trade File") directly into SSGA's Cash Portal System ("Cash Portal") no later than 2:00 PM Eastern Time ("ET", which for clarity would refer to either Eastern Standard Time or Eastern Daylight Time as applicable) on Trade Date. "Trade Date" shall mean the price date for the trade activity, and is limited to Business Days, where "Business Day" means any day other than a Saturday or Sunday on which (a) State Street Bank is open for the purpose of transacting business in Boston, Massachusetts and New York, New York and (b) the New York Stock Exchange is open.

Access, passwords and security: State Street will support the Board's use of SFTP using two-factor authentication, specifically password authentication and public key authentication. Notwithstanding the foregoing, the Board and SSGA are responsible for the confidentiality and use of the Plan's user ID(s), trading password(s), and key encryption code(s) (if applicable).

FISMA requires that the FRTIB and SSGA maintain and document their interconnections via an Interconnection Security Agreement (ISA) with a one-hour reporting parameter for security incidents.

In the event of any technical issues with Trade File to Cash Portal, the Board will contact State Street and invoke the contingency measures described below in Section B below.

Notification of any changes affecting the Trade File that may affect delivery, receipt, and/or processing of the Trade File must be made in writing at least 90 days prior to implementing the change. The Board and State Street will mutually determine whether a joint testing effort will be required before implementing any such change.

## **B. Contingency Trade File Instructions**

In the event that the Board is unable to submit an automated Trade File to State Street within the timeframe required in Section A above, the Board will notify SSGA Shareholder Services via email at (b) (4) by 1:00 PM ET on Trade Date of the reason and will request that contingency procedures be implemented. In the event State Street is unable to accept an automated Trade File, State Street will promptly notify the Board via email of the reason and will request that contingency procedures be implemented.

If a request is made by either party to implement contingency procedures, both parties will in good faith seek to accommodate such request by following one of the two contingency procedures described below, in order of priority:

- First priority contingency procedure: By 2 PM ET, the Board will send State Street via email a Trade File equivalent to the automated file transmitted through the data feed, which will be manually uploaded into the State Street system. This file should be in CSV

or TXT format (specifications are described in Appendix B). The CSV or TXT file must be accompanied by a signed letter instructing SSGA to accept the accompanying file for processing. The Board will endeavor to connect by phone with at least one of the State Street contacts listed on Appendix A to confirm receipt of the email.

- Second priority contingency procedure: In the event that the Board cannot submit a CSV or TXT file or State Street cannot accept a CSV or TXT file to implement the first priority contingency procedure, such party will as promptly as possible (but in any event not later than 2:00pm ET on Trade Date) notify the other party, and the parties will revert to a fully manual process. In such case, the Board will prepare instructions in the form of a Letter of Direction (Sample Letter of Direction are attached as Appendix C-1 and C-2) and submit via email to (b) (4) no later than 2:00pm ET on Trade Date. The Board will endeavor to connect by phone with at least one of the State Street contacts listed on Appendix A to confirm receipt of the email.

All letters submitted to State Street in connection with the first priority contingency procedure, and all Letters of Direction so submitted in connection with the second priority contingency procedure, will not be accepted by State Street unless signed by one or more designated authorized individuals identified on the FRTIB Authorized Signers List on file with State Street. State Street will confirm via phone callback to the initiator the trade directive information submitted to State Street, using telephone number(s) reflected on such Authorized Signers List.

### **C. Trade Confirmations**

With respect to each Instruction successfully transmitted by the Board to State Street, State Street will generate a file confirming receipt, which will be e-mailed to the Board and uploaded to a predetermined location on the Secured Transport Server and made accessible to the Board.

This file acknowledges a successful transfer of the file and number of records received. State Street will also generate confirmations once the trades are processed in SSGA's Cash Portal on Trade Date.

The Board will promptly notify SSGA Shareholder Services via email if there are any inaccuracies with the confirmation details received. If the Board does not receive a confirmation file within 10 minutes of sending the trade file, if there are any discrepancies between the Confirmation File and the Board's Order File, or if the Confirmation File contains any rejections of any of the Board's orders, it should contact SSGA Shareholder Services to confirm receipt of the original file. SSGA Shareholder Services will promptly notify the Board of any trades rejected from the file received.

If State Street does not receive any call from the Board, the order will be processed as outlined in the Confirmation File.

SSGA will generate trade confirmations post valuation on T+1 and submit to the Board reflecting the beginning and ending shares of each account and the executed units and price of trades

valued on Trade Date. This information is available in CSV or PDF format.

**D. Trade Rejects, Revisions, and Cancellations**

- Trade Rejects: SSGA Shareholder Services will promptly notify the Board via email of any trades rejected from the Trade File received. If the Board wishes to rectify the trade and resubmit, it must provide the CSV file by the State Street FTP system, then e-mail as a secondary effort. Failing that, manual instructions via Letter of Direction will be sent via email to (b) (4) once the reject reason is rectified. Trade confirmations will be provided to the Board for the trades rectified and resubmitted, following the process defined in Section C above.
- Trade Revisions and Cancellations: If the Board wishes to request the revision or cancellation of any trade reflected in a Trade File following its submission to State Street, the Board will so notify SSGA Shareholder Services via telephone and email as promptly as possible. State Street will in good faith review any such request and respond as promptly as possible as to whether it can accommodate such request. If the request is approved by State Street, the Board will submit manual Instructions via Letter of Direction and submit via email to (b) (4) Trade confirmations will be provided to the Board for these trades, following the process defined in Section C above.

## Appendix A

### Daily Trading Operations Contacts/Telephone Numbers:

#### FRTIB

| Name                        | Title                          | Telephone                                                | Email Address              |
|-----------------------------|--------------------------------|----------------------------------------------------------|----------------------------|
| Susan Crowder               | Chief Financial Officer        | Office: 202-942-1615<br>Work Mobile: (b) (6)             | Susan.Crowder@frtib.gov    |
| Bill Jacobson               | Deputy Chief Financial Officer | Office: 202-942-1635<br>Work Mobile: (b) (6)             | William.Jacobson@frtib.gov |
| Eric Twyman                 | Division Chief                 | Office: 202-942-1611<br>Work Mobile: (b) (6)             | Eric.Twyman@frtib.gov      |
| Andrew Hursin               | Accountant                     | Office: 202-864-8572<br>Work Mobile (text only): (b) (6) | Andrew.Hursin@frtib.gov    |
| Troy Eyrond                 | Accountant                     | Office: n/a<br>Work Mobile (text only): (b) (6)          | Troy.Eyrond@frtib.gov      |
| Reginold James              | Accountant                     | Office: 202-864-8637<br>Work Mobile: (b) (6)             | Reginold.James@frtib.gov   |
| Fund Management Group Inbox | n/a                            | n/a                                                      | FundManagement@frtib.gov   |

#### SSGA Contacts

Trade instructions e-mails: (b) (4)

Inquiry e-mails: (b) (4)

SSGA contact list is below

| Name    | Telephone | Hours           |
|---------|-----------|-----------------|
| (b) (6) | (b) (6)   | 7:00am – 3:30pm |
|         |           | 9:30am – 6:00pm |
|         |           | 7:00am – 3:30pm |
|         |           | 7:00am – 3:30pm |
|         |           | 7:00am – 3:30pm |
|         |           | 8:00am – 5:00pm |
|         |           | 9:30am – 6:00pm |

## Appendix B

### First Priority Contingency Cash Portal Up-loadable File Format

The format of the file is as follows:

TD|SD|TRANS|Fund|Acct|AMT|CURR|UNITS|COMMENT|N

|                          |                    |
|--------------------------|--------------------|
| TD= Trade Date           | AMT = Amount       |
| SD = Settlement Date     | CURR = Currency    |
| TRANS = Transaction Type | UNITS = Units      |
| FUND = SSgA Fund Code    | COMMENT = optional |
| Acct = SSgA Account Code | N = New            |

Through email this file can be sent as a TXT or CSV format.

| Field Name           | Format                              | Field Length | Requirement                                                                             | Other Rules                                                                                        |
|----------------------|-------------------------------------|--------------|-----------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------|
| Trade Date           | DD-MMM-YYYY                         | 11           | Required                                                                                | Ex: 01-JAN-2011                                                                                    |
| Settlement Date      | DD-MMM-YYYY                         | 11           | Required                                                                                | Ex: 01-JAN-2011                                                                                    |
| Transaction Type     | Alpha text                          | Variable     | Required                                                                                | -Must be exact Cash Portal transaction types<br>-Must not contain pipes                            |
| Fund Code            | Alpha numeric text or Blank         | Variable     | Optional if Account is populated, else Required                                         | -Must be an existing Fund Code in Cash Portal Configuration Database<br>-Must not contain pipes    |
| Account Code         | Alpha numeric text or Blank         | Variable     | Optional if Fund is populated, else Required                                            | -Must be an existing Account Code in Cash Portal Configuration Database<br>-Must not contain pipes |
| Instruction Amount   | Numeric (example: nnnn.nn) or Blank | TBD          | Required unless the Units field is populated                                            | -No signs for amount<br>-Is expected to be the Instruction currency<br>-Must not contain commas    |
| Instruction Currency | Alpha text or Blank                 | 3            | Required if the Instruction Amount field is populated                                   | -Must be an ISO currency                                                                           |
| Units                | Numeric (example: nnnn.nn) or Blank | TBD          | Required for Unit Buy and Unit Sell transaction types or if Instruction Amount is blank |                                                                                                    |
| Comments             | Alpha numeric text                  | Variable     | Optional                                                                                | -No commas allowed                                                                                 |
| Source Identifier    | Alpha numeric text                  | Variable     | Optional                                                                                | -Must be unique<br>-Will be stored in Cash Portal if provided                                      |
| Instruction Type     | Alpha                               | 1            | Optional                                                                                | -Must be either:<br>N for New<br>R for Revision<br>C for Cancel                                    |

Basic Transaction Types used:

CONTRIBUTION - ( The unit Field is left blank)

REDEMPTION - ( The unit Field is left blank)

UNIT\_SELL - ( The AMT Field is left blank)

UNIT\_BUY - ( The AMT Field is left blank)

**Appendix C-1**  
**Sample Contribution Letter of Direction**

**State Street Global Advisors**

One Iron Street  
Boston, MA 02110

☐ Revision

☐ Cancellation

Completed by: \_\_\_\_\_

Attention: SSGA Boston Shareholder Services – (b) (4)

Dear State Street Global Advisors:

\_\_\_\_\_ is writing to advise SSGA of our intent to make the below contribution to our separately managed account:

|                           |                          |
|---------------------------|--------------------------|
| <b>TRADE DATE:</b>        |                          |
| <b>TRANSACTION:</b>       | <b>CASH CONTRIBUTION</b> |
| <b>SSGA ACCOUNT NAME:</b> |                          |
| <b>SSGA ACCOUNT CODE:</b> |                          |
| <b>AMOUNT:</b>            |                          |
| <b>CURRENCY:</b>          |                          |

Special Instructions:

|  |
|--|
|  |
|--|

We understand that SSGA may buy securities on Trade Date in the portfolio on the basis of the instructions provided in this letter.

We understand that SSGA is providing this template in order to ensure that all required information is included in the trade request. Before signing and returning the letter, we have reviewed it for accuracy and completeness and ensured that all instructions, as they appear, match our intent. We understand that SSGA will not be responsible for any inaccurate or incomplete information

Sincerely yours,

\_\_\_\_\_  
Authorized Signature

Date: \_\_\_\_\_

**Appendix C-2**  
**Sample Withdrawal Letter of Direction**

**State Street Global Advisors**  
One Iron Street  
Boston, MA 02110

- |                                       |
|---------------------------------------|
| <input type="checkbox"/> Revision     |
| <input type="checkbox"/> Cancellation |

Completed by: \_\_\_\_\_

Attention: SSGA Boston Shareholder Services – (b) (4)

Dear State Street Global Advisors:

\_\_\_\_\_ is writing to advise of our intent to make the below withdrawal from our separately managed account:

|                               |                        |
|-------------------------------|------------------------|
| <b>DATE CASH IS REQUIRED:</b> |                        |
| <b>TRANSACTION:</b>           | <b>CASH WITHDRAWAL</b> |
| <b>SSGA ACCOUNT NAME:</b>     |                        |
| <b>SSGA ACCOUNT CODE:</b>     |                        |
| <b>AMOUNT:</b>                |                        |
| <b>CURRENCY:</b>              |                        |

Special Instructions:

|  |
|--|
|  |
|--|

We understand SSGA may sell securities in advance of the date that cash is required in our custody account based on the standard market conventions.

We also understand that this letter should be emailed to (b) (4)

We understand that SSGA is providing this template in order to ensure that all required information is included in the trade request. Before signing and returning the letter, we have reviewed it for accuracy and completeness and ensured that all instructions, as they appear, match our intent. We understand that SSGA will not be responsible for any inaccurate or incomplete information

Sincerely yours,

\_\_\_\_\_  
Authorized Signature

Date: \_\_\_\_\_

## APPENDIX D

### TRANSACTION SECURITY PROCEDURES

#### Security Procedures

| Transmission Method                                                  | Corresponding Security Control(s) Available for Use for Authentication (If there is more than one applicable security control, unless otherwise agreed in writing with the Board, State Street may, in its discretion, use any of the listed security controls)         |
|----------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Secure File Transfer only with automated Straight Through Processing | <ul style="list-style-type: none"><li>• Self-authenticating; no further security control</li></ul>                                                                                                                                                                      |
| Email with Enforced Transport Layer Security (TLS)                   | Authorized Initiator and Verifier List in conjunction with one or more of the following: <ul style="list-style-type: none"><li>• Repetitive Cash Transfer w/ secondary call back for instructions over threshold*</li><li>• Telephone Confirmation (Callback)</li></ul> |
| Email                                                                |                                                                                                                                                                                                                                                                         |
| Facsimile                                                            |                                                                                                                                                                                                                                                                         |

\* Applicable if the Repetitive Cash Transfer Instructions form below (or a substitute reasonably acceptable to State Street) has been completed and submitted to State Street, and accepted by State Street, or if Repetitive Cash Transfer Instructions have otherwise been established with State Street.

#### Effectiveness and Other Changes

The security procedures described above will be applicable to all Instructions, including with respect to administrative changes such as changes in custodian or recordkeeper, the establishment or change of repetitive wires and any changes to authorized individuals. In the event that State Street has concerns regarding the security or integrity of any Security Procedure, State Street may suspend or terminate its use and acceptance immediately and without prior notice.

#### In-Kind Transactions

A callback for an in-kind transaction may not include a confirmation of wire instructions, depending on the information included in the Instruction relating to the transaction. If the Board directs State Street to obtain wire instructions from a third party service provider, such as a custodian or transition manager, those instructions will be used for that transaction.

## **Transaction Security Procedures (Continued)**

### **Repetitive Cash Transfer Instructions (For Cash Transfers Only)**

A “**Repetitive Cash Transfer Instruction**” is an Instruction relating to a cash transfer that is originated by a Client, or third party authorized by the Board, and that may be repeated provided there is no change from transfer to transfer in the (i) debit DDA/cash account at State Street, (ii) destination institution, or (iii) beneficiary name and account number. The only allowable changes are to the date, currency, and amount.

The establishment of any new Repetitive Cash Transfer Instructions, and any change to an existing Repetitive Cash Transfer Instructions, must be in writing signed by one or more persons identified to State Street as an authorized FRTIB initiator and submitted to State Street electronically or via other means. To verify any such establishment or change, State Street will perform a callback to a person identified to State Street as an authorized FRTIB verifier who was not the initiator.

Repetitive Cash Transfer Instructions are only available for recurring cash redemptions, where cash is transferred from an existing account. This security procedure is recommended whenever funds/cash are frequently transferred between the same two accounts. Repetitive Cash Transfer Instructions must be confirmed annually.

### **Repetitive Cash Transfer Instructions Form**

For outgoing Repetitive Cash Transfer Instructions please complete the following form:

|                                                     |  |
|-----------------------------------------------------|--|
| Intermediary Bank Name:                             |  |
| Intermediary Bank BIC/SWIFT Code:                   |  |
| Intermediary Account Number:                        |  |
| Receiving Custodian/Bank Name (including location): |  |
| Receiving Custodian/Bank ABA #:                     |  |
| Beneficiary Account Name:                           |  |
| Beneficiary Account Number (DDA):                   |  |
| Beneficiary Location:                               |  |
| Further Credit Beneficiary:                         |  |
| Further Credit Account Number:                      |  |
| Reference Information:                              |  |

Please note that under certain circumstances, State Street also may consider repeated usage by Board or its Authorized Persons of the same wire instructions to have established Repetitive Cash Transfer Instructions.

### **DDA Transfers (Available Only if State Street Bank and Trust Company serves as Custodian)**

If the Board uses State Street Bank and Trust Company as its custodian, and funds will be transferred to or from the Board's custody account with State Street, DDA instructions may be provided in the space below.

Beneficiary Account Number (DDA): \_\_\_\_\_

Receiving Custodian/Bank Name: State Street Bank and Trust Company

## APPENDIX E

### ADDITIONAL TERMS AND CONDITIONS

## 1. SECURITY PROCEDURES FOR INSTRUCTIONS

a. Provided that State Street receives and processes an Instruction in compliance with these above Guidelines, which Instruction is or purports to be given by the Board or on its behalf by any legal entity or natural person authorized, directly by the Board or indirectly by another Authorized Person, to give Instructions to State Street for or on behalf of the Board (an "Authorized Person"), the Board agrees to be bound by such Instruction and, unless prohibited by applicable law, the Board will be solely responsible for the consequences resulting from State Street's implementation of such Instruction, even if the Instruction was not in fact initiated or authorized by or on behalf of the Board. Where State Street is unable to verify the authenticity of an Instruction, the Board shall be solely responsible if State Street contemporaneously notifies the Board that it is executing the Instruction on an exception basis and the Board and/or its Authorized Person authorizes State Street to proceed on such basis.

b. The Board acknowledges that the procedures reflected in the Guidelines are commonly used by the Board and State Street in, and relied upon for, the transmission of Instructions. In light of the Board's circumstances and the size, type and frequency of the Board's Instructions, State Street and the Board agree that such procedures are commercially reasonable security procedures and the Board accepts the risks associated with the use of such procedures.

## 2. REJECTION: CANCELLATION OF INSTRUCTIONS

a. State Street reserves the right to reject or decline to process or delay the processing of any Instruction and may refuse to act on any Instruction (a) that is not in compliance with the Guidelines defined above (b) where State Street suspects or doubts in good faith that the Instruction was not properly authorized, or is not authentic or accurate, (c) that could reasonably be expected to result in an overdraft of the applicable Board account, (d) if executing such Instruction would cause State Street, in State Street's sole judgment, to exceed any wire transfer limits that are applicable to State Street, or (e) that could reasonably be expected to cause State Street to breach any applicable rule, law, regulation, order or directive or other similar limitation imposed on State Street, and in each such case, State Street will have no liability to the Board or any other person or entity as a result of its decision to decline to process or delay processing of any such Instruction. State Street shall give notice to the Board or the applicable Authorized Person (if a third party) of any such action as soon as reasonably practicable.

b. State Street shall use reasonable efforts to act on authorized requests to cancel or amend Instructions received in compliance with the Guidelines provided that such requests are received in a timely manner. State Street shall have no liability for any failure to act on any such cancellation unless it has been afforded a reasonable opportunity to cancel such Instruction.

## 3. LIMITED ACCESS

The Board shall cause its Authorized Persons to restrict access to the Guidelines and related information to those of its Authorized Persons who have a need to know such information. State Street shall not be responsible for determining whether any security feature of the Guidelines has been breached by the Board, any Authorized Person or any representative of the Board, or any third party.

## 4. ACCOUNT AND FUND CODES

State Street shall process all Instructions on the basis of the account and fund codes contained in the Instructions. In the event of a discrepancy between any name indicated in the Instruction and the account and/or fund codes indicated in the same Instruction, the account and fund code shall take precedence and govern.

## 5. ERRONEOUS INSTRUCTIONS

The Guidelines are intended to provide a commercially reasonable degree of protection against unauthorized transactions of certain types and are not designed to detect errors or omissions in Instructions. State Street shall not have a duty to detect errors or omissions in Instructions, or any liability for any failure to do so.

## 6. EXECUTION

Subject to Section 2 above, execution of any Instruction shall occur on the execution date indicated in such Instruction, provided that such Instruction is received by the deadline for processing such a request set forth in the Guidelines. Unless State Street otherwise notifies the Client, all Instructions received after this time will be deemed to have been received on the next Business Day.

## 7. AUTHORIZED PERSONS AND CONTACTS FOR CONFIRMATIONS

The Board may designate one or more Authorized Persons who may issue Instructions in compliance with the Guidelines. To do so, the Board must complete and submit to State Street either an Authorized Initiators and Verifiers List, a sample of which will be provided upon request, or an alternative form that (i) is on the Board's letterhead, signed by an authorized signatory, (ii) includes the name, phone number and signature of each person authorized to issue Instructions, (iii) includes the name and phone number of each person authorized to verify Instructions, and (iv) is otherwise reasonably acceptable to State Street. State Street encourages the Board to designate at least two Authorized Persons to avoid delays in State Street's processing and confirmation of Instructions.

## APPENDIX E

### ADDITIONAL TERMS AND CONDITIONS

#### 8. AMENDMENTS

The Guidelines and this Appendix E may be amended only by written agreement of the Board and State Street.

#### 9. LIABILITY LIMITS

State Street shall compensate the Board at the prevailing industry standard rate for lost interest resulting from State Street's failure to comply with the terms and conditions set forth herein. In no event shall State Street be liable for special, indirect, or consequential damages that may arise therefrom.

#### 10. FORCE MAJEURE

State Street shall not be liable for any costs or damages due to delay or nonperformance of its obligations described herein arising out of any cause or event beyond its control, including, without limitation, any damages to the Board, that arise from or are the result of work stoppage, power or other mechanical failure, computer virus, natural disaster, governmental action or communication disruption.

|                                                                                                                                                               |  |                                                                                 |  |                                                                                                              |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|--|---------------------------------------------------------------------------------|--|--------------------------------------------------------------------------------------------------------------|--|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                                                                                                     |  | 1. CONTRACT ID CODE                                                             |  | PAGE OF PAGES<br>1 67                                                                                        |  |
| 2. AMENDMENT/MODIFICATION NO.<br>P0002                                                                                                                        |  | 3. EFFECTIVE DATE<br>See Block 16C                                              |  | 4. REQUISITION/PURCHASE REQ. NO.                                                                             |  |
| 5. PROJECT NO. (If applicable)                                                                                                                                |  | 6. ISSUED BY<br>FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002 |  | 7. ADMINISTERED BY (If other than Item 6)<br>FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002 |  |
| CODE                                                                                                                                                          |  | OED_ACQ_MGT_DIV I                                                               |  | CODE OED_ACQ_MGT_DIV AI                                                                                      |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)<br>STATE STREET GLOBAL ADVISORS TRUST COMPANY<br>1 IRON ST<br>BOSTON MA 022101641 |  | (X)                                                                             |  | 9A. AMENDMENT OF SOLICITATION NO.                                                                            |  |
| CODE 1000038596                                                                                                                                               |  | FACILITY CODE                                                                   |  | 9B. DATED (SEE ITEM 11)                                                                                      |  |
|                                                                                                                                                               |  | X                                                                               |  | 10A. MODIFICATION OF CONTRACT/ORDER NO.<br>TIB-2021-C-0001                                                   |  |
|                                                                                                                                                               |  |                                                                                 |  | 10B. DATED (SEE ITEM 13)<br>10/21/2020                                                                       |  |

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☐ is not extended.  
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

**12. ACCOUNTING AND APPROPRIATION DATA (If required)**

See Schedule

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

|           |                                                                                                                                                                                                                       |
|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.                                                                      |
|           | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| X         | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:<br>FAR 52.243-1 Changes Fixed-Price                                                                                                          |
|           | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

E. IMPORTANT: Contractor ☐ is not, ☒ is required to sign this document and return 1 copies to the issuing office.

**14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)**

The purpose of this modification is to amend and update the content of Sections B, C, F, and G of the subject contract's schedule and Appendix A and B of the Investment Management Services Agreement (IMSA) at no cost to the government.

The modification addresses three main areas: (1) Facilitating the partial transfer of I Fund assets to SSGA, (2) (b) (4) and (3) Correcting minor typographical errors.

See continuation pages below:

Continued ...

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                                          |  |                                                                                            |  |
|----------------------------------------------------------|--|--------------------------------------------------------------------------------------------|--|
| 15A. NAME AND TITLE OF SIGNER (Type or print)<br>(b) (6) |  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)<br>Danielle Tapp                |  |
| 15B. CONTRACTING OFFICER'S<br>(b) (6)                    |  | 16B. UNITED STATES OF AMERICA<br>DANIELLE TAPP<br>(Signature of Contracting Officer)       |  |
| 15C. DATE SIGNED<br>July 29, 2022                        |  | 16C. DATE SIGNED<br>Digitally signed by DANIELLE TAPP<br>Date: 2022.07.29 13:56:34 -04'00' |  |



**DESCRIPTION OF AMENDMENT/MODIFICATION (Continuation Pages)**

As a result of this modification, the following changes are applied to the Schedule (Sections B through J) of Contract TIB-2021-C-0001:

1. Section B.2., paragraph 3, is hereby changed from:

*“\* If for reasons of local regulatory restrictions in emerging markets countries, and after working in good faith with Contractor(s), the FRTIB is unable to reach a satisfactory solution for Contractor B to gain appropriate exposure for tracking the MSCI ACWI ex-U.S. IMI Index, the target allocation percentage of the I Fund for Contractor A will be reset to 100% and for Contractor B will be reset to 0.0%. FRTIB will have the sole right to final determination of the feasibility of establishing appropriate exposure.”*

to:

*“\* If for reasons of local regulatory restrictions or events in emerging markets countries, and after working in good faith with Contractor(s), the FRTIB is unable to reach a satisfactory solution for Contractor B to gain or retain appropriate exposure for tracking the Replacement International Index, the target allocation percentage of the I Fund for Contractor A will be reset to 100% and for Contractor B will be reset to 0.0%. FRTIB will have the sole right to final determination of the feasibility of establishing appropriate exposure.”*

2. Section C.1.4.b, row 5, Description/Benchmark is hereby changed from “MSCI EAFE Index (to change to the MSCI ACWI ex-US Index)” to “MSCI EAFE Index (to change to the Replacement International Index)”

3. Section C.1.4.b, paragraph 4, is hereby changed from:

*“NOTE: Throughout this Contract, any reference to returns of the MSCI EAFE Index and the MSCI ACWI ex-US IMI is on a net of dividend withholding taxes basis as calculated by MSCI. The same shall apply to all international indices cited by Offerors in responses to the attached questionnaire.”*

to:

*“NOTE: Throughout this Contract, any reference to returns of the MSCI EAFE Index and the Replacement International Index is on a net of dividend withholding taxes basis as calculated by MSCI. The same shall apply to all international indices cited by Offerors in responses to the attached questionnaire.”*

4. Section C.2.1.b, bullet 2, iv, is hereby changed from:

*“iv. I Fund separate account – a MSCI EAFE Index strategy. Following I Fund benchmark transition, a MSCI ACWI ex-US IMI Index strategy in a separate account vehicle that accommodates daily cash flows.”*

to:

*“iv. I Fund separate account – a MSCI EAFE Index strategy. Following I Fund benchmark transition, a Replacement International Index strategy in a separate account vehicle that accommodates daily cash flows.”*

5. The heading for Section C.2.4. is hereby changed from:

*“4. Transition the I Fund’s benchmark index —Contractor A only”*

to:

*“4. Transition the I Fund’s benchmark index”*

6. The following text is hereby added as Bullet 1 under Section C.2.4.

- The “Replacement International Index” as referred to in this document and tertiary documents is at the discretion of the FRTIB and its delegated representatives. Once a Replacement International Index is identified in writing by the FRTIB, Contractors A and B shall support the execution of this conversion as described herein. Any reference to “MSCI ACWI ex-US IMI Index” in this document or related documents associated with this contract shall be re-interpreted to read “Replacement International Index.”*

7. Section C.2.4, bullet 2, is hereby changed from:

- “Provide transition services to change the I Fund’s portfolio holdings to reflect an index strategy that tracks the MSCI ACWI ex-US IMI Index from an index strategy that tracks the MSCI EAFE Index within an agreed upon transition period over a predetermined number of stages between the FRTIB and investment manager.”*

to:

- “Provide transition services, with respect to the assets managed by Contractor B, to change the I Fund’s portfolio holdings managed by Contractor B to reflect an index strategy that tracks the Replacement International Index from an index strategy that tracks the MSCI EAFE Index within an agreed upon transition period over a predetermined number of stages between the FRTIB and investment manager.”*

8. Section C.2.4, bullet 3, is hereby changed from:

- *“Provide investment management services as enumerated in C.2.1 for the TSP I Fund during a period in which the portfolio will track an agreed upon custom transition benchmark over an agreed upon time period and an agreed upon number of stages as it transforms from the MSCI EAFE Index to the MSCI ACWI ex-U.S. IMI Index. Proposals for custom transition benchmarks will be assessed and a determination will be made by the Agency with the Contractor chosen for the majority manager position.”*

to:

- *“Provide investment management services as enumerated in C.2.1 for the TSP I Fund during a period in which the portfolio will track an agreed upon custom transition benchmark over an agreed upon time period and an agreed upon number of stages as it transforms from the MSCI EAFE Index to the Replacement International Index.”*

9. Section C.4.3, sentence 1, is hereby changed from:

*“If the Contractor is not the successful offeror on an RFP subsequent to the contract, then the Contractor shall.....”*

to:

*“If the Contractor is not a successful offeror on an RFP subsequent to this contract, then the Contractor shall.....”*

10. The heading and description for Section C.5. is hereby changed from:

*“C.5. Targeted Allocations of Contractor A and Contracting B  
In addition to the foregoing in Section C.6 Phase-In/Phase-Out Requirements, the following shall apply with regard to the intended two-manager structure applied to each of the Funds:”*

to:

*“C.5. Targeted Allocations of Contractor A and Contractor B  
In addition to the foregoing in Section C.4 Phase-In/Phase-Out Requirements, the following shall apply with regard to the intended two-manager structure applied to each of the Funds:”*

11. Section C.5., paragraph 1, is hereby identified as point 1 and its content is changed from:

*“Initial funding of Contractor A and Contractor B: Contractor shall provide transition management services until transition is complete for each Fund. There will be no performance holiday, meaning no period during which Fund performance is not expected to continue to track the Funds’ respective indices. There will be no blackout period, meaning no period during which the Funds will be shielded from accepting subscriptions or funding redemptions.”*

to:

*“1. Initial funding of Contractor A and Contractor B: Contractor shall provide transition management services until transition is complete for each Fund, including those services, resources, accommodations, and obligations deemed applicable from Section C.4 Phase-In/Phase-Out Requirements. There will be no performance holiday, meaning no period during which Fund performance is not expected to continue to track the Funds’ respective indices. There will be no blackout period, meaning no period during which the Funds will be shielded from accepting subscriptions or funding redemptions.”*

12. Section C.5.1, paragraph 3, is hereby changed from:

*“Initial funding for the I Fund to Contractor A will be made by a one-time in-kind transfer of all securities and cash to Contractor A from the existing Contractor. Initial funding for the I Fund to Contractor B will be made by a one-time pro-rata transfer of securities and cash as practicable or a one-time transfer of USD \$1 billion (greater, if agreeable) facilitated by the FRTIB from Contractor A to Contractor B. Such one-time transfer to Contractor B will occur only following Contractor A’s completion of the transition of the I Fund benchmark as described in section C.2.4 of the Statement of Work, but not later than 90 days following the completed transition of the benchmark.”*

to:

*“Initial funding for the I Fund to Contractor A will be made by a one-time in-kind transfer of all securities and cash to Contractor A from the existing Contractor. Initial funding for the I Fund to Contractor B will be made by a one-time pro-rata transfer of securities and cash as practicable or a one-time transfer of USD \$1 billion (greater, if agreeable) facilitated by the FRTIB from Contractor A to Contractor B. Such a one-time transfer to Contractor B will occur only upon decision of the FRTIB and resulting notification in writing by a Contracting Officer Representative appointed to this contractor by the Senior Procurement Executive.”*

13. Section C.5.1, paragraph 4, is hereby added:

*“The FRTIB may choose to transfer assets from Contractor A to Contractor B regardless of whether or not there has been any I Fund index change prior to the transfer. No anticipated change in the I Fund benchmark will be required for there to be a transfer of assets from Contractor A to Contractor B.”*

14. Section C.5.2 is hereby changed from:

*“2. Deviation from target percentages: Once all target percentages are reached, the FRTIB will monitor the allocations to Contractor targets on at least a quarterly basis. Upon review and based on reaching a threshold of absolute 1% deviation from the target percentage allocation as determined by the FRTIB, the FRTIB will direct net daily transactions to bring Contractor allocations in line with target percentages by directing all positive net daily transactions to the Contractor requiring an increase in assets and sourcing all negative net daily transactions from the Contractor requiring a decrease in assets until target percentages are reached to within 0.1%. The FRTIB will provide notification of at least five business days prior to deviating from pro-rata allocation of net daily transactions in order to bring Contractor allocations in line with targets.”*

to:

*“2. Deviation from target percentages: Once all target percentages are reached, the FRTIB will monitor the allocations to Contractor targets on at least a quarterly basis. Upon review and based on reaching a threshold of absolute 1% deviation from the target percentage allocation as determined by the FRTIB, the FRTIB will direct net daily transactions to bring Contractor allocations in line with target percentages by directing all positive net daily transactions to the Contractor requiring an increase in assets and sourcing all negative net daily transactions from the Contractor requiring a decrease in assets until target percentages are reached to within 0.1%. If deemed necessary or an improvement to the process, the FRTIB in its discretion may effect all or part of the adjustment to target percentages by scheduling cash redemptions and cash deposits to the respective Contractors. The FRTIB will provide notification of at least five business days prior to deviating from pro-rata allocation of net daily transactions in order to bring Contractor allocations in line with targets.”*

15. Section C.5.4 is hereby changed from:

*“4. Periodic review: The FRTIB reviews the Contractors on a periodic basis for investment performance, securities lending performance, custody and administrative services, as well as other deliverables, but, not less than annually. The FRTIB also periodically reviews statistical analysis of TSP net daily transactions, but, not less than every two years. As a result of either of the two reviews, the FRTIB may in its sole discretion, and without competitive re-bidding or consent from the Contractor, re-target percentages so that Contractor B will manage no more than 30% and no less than 10% of the assets of any one Fund. Notwithstanding the foregoing, changes in target allocations are not expected during the Contract period. Adjustment to new targets will be made effective through the directing of net daily transactions, by directing all positive net daily transactions to the Contractor requiring an increase in assets and directing all negative net daily transactions from the Contractor requiring a decrease in assets. The FRTIB will provide notification of at least 30 calendar days prior to beginning re-targeting attributable to periodic performance and transactions reviews.”*

to:

*“4. Periodic review: The FRTIB reviews the Contractors on a periodic basis for investment performance, securities lending performance, custody and administrative services, as well as other deliverables, but, not less than annually. The FRTIB also periodically reviews statistical analysis of TSP net daily transactions, but, not less than every two years. As a result of either of the two reviews, the FRTIB may in its sole discretion, and without competitive re-bidding or consent from the Contractor, re-target percentages so that Contractor B will manage no more than 30% and no less than 10% of the assets of any one Fund. Notwithstanding the foregoing, changes in target allocations are not expected during the Contract period. Adjustment to new targets will be made effective through the directing of net daily transactions, by directing all positive net daily transactions to the Contractor requiring an increase in assets and directing all negative net daily transactions from the Contractor requiring a decrease in assets. If deemed necessary or an improvement to the process, the FRTIB in its discretion may effect all or part of the adjustment to target percentages by scheduling cash redemptions and cash deposits to the*

*respective Contractors. The FRTIB will provide notification of at least 30 calendar days prior to beginning re-targeting attributable to periodic performance and transactions reviews."*

16. Section C.5.5, sentence 2, is hereby changed from:

*"...Transfer will occur as soon as practicable with the full assistance of the Contractor relinquishing discretion over assets, as outlined above in C..."*

to:

*"...Transfer will occur as soon as practicable with the full assistance of the Contractor relinquishing discretion over assets, as outlined above in C.4..."*

17. Section F.4. The Delivery Date/Time for the daily report deliverables identified in Sections F.3.1.d and F.3.1.e is hereby changed from 6:00am EST to 10:00am EST.

18. Section G.1.1. The Contracting Officer is hereby changed from Matthew Hamilton to Mark Chranowski.

**Contracting Officer**

Mark Chranowski

(202) 864-8546

[Mark.Chranowski@FRTIB.gov](mailto:Mark.Chranowski@FRTIB.gov)

19. Section G.2.1. Stephen Deutsch and Anthony Whitten are removed as alternate CORs. Jonathan Ahn is appointed as a replacement alternate COR. Michael Jerue remains as an alternate COR. Benjamin Gong remains as the primary COR.

**Primary COR**

Name: Benjamin Gong

Phone Number: (b) (6)

Email Address: [Benjamin.Gong@frtib.gov](mailto:Benjamin.Gong@frtib.gov)

**Alternate COR**

Name: Michael Jerue

Phone Number: (b) (6)

Email Address: [Michael.Jerue@frtib.gov](mailto:Michael.Jerue@frtib.gov)

**Alternate COR**

Name: Jihyun (Jonathan) Ahn

Phone Number: (b) (6)

Email Address: [Jihyun.Ahn@frtib.gov](mailto:Jihyun.Ahn@frtib.gov)

20. The Federal holiday table in Section G.5 is deleted and replaced as follows:

| <b>Holiday</b>                                  | <b>Date</b>                 |
|-------------------------------------------------|-----------------------------|
| New Year's Day                                  | January 1, as observed      |
| Inauguration Day – National Capital Region only | January 20, as observed     |
| Martin Luther King's Birthday                   | Third Monday in January     |
| President's Day                                 | Third Monday in February    |
| Memorial Day                                    | Last Monday in May          |
| Juneteenth National Independence Day            | June 19, as observed        |
| Independence Day                                | July 4, as observed         |
| Labor Day                                       | First Monday in September   |
| Columbus Day                                    | Second Monday in October    |
| Veteran's Day                                   | November 11, as observed    |
| Thanksgiving Day                                | Fourth Thursday in November |
| Christmas Day                                   | December 25, as observed    |

As a result of this modification, the following changes are applied to Attachment 003, the Investment Management Services Agreement (IMSA):

1. Appendix A, Exhibit 1, Investment Guidelines Effective Date, of the IMSA is hereby changed from:

*"Investment Guidelines Effective Date: the Effective Date as defined in the Agreement."*

to:

*"Investment Guidelines Effective Date:*

- *TSP C Fund, TSP S Fund, TSP F Fund and Cash Sweep Election: October 21, 2020*
- *TSP I Fund: Upon funding"*

2. Appendix A, Exhibit 1, TSP I Fund, of the IMSA is hereby changed from:

*"TSP I Fund - International Stock Index Investment Fund Account [Reserved]"*

to:

*"TSP I Fund - International Stock Index Investment Fund Account  
Investment Objective"*

*The investment objective for the TSP I Fund - International Stock Index Investment Fund Account (for purposes of this description only, the "Account") is to seek an investment return that approximates as closely as practicable, before expenses, the performance of the MSCI EAFE Index or such other index as agreed to from time to time by State Street and the Board (for purposes of this strategy description, the "Index") over the long term. Consistent with its other passive international equity mandates (some of which may include emerging as well as developed markets), State Street's approach to meeting the Account's investment objective is to track the Index as closely as possible. Given the liquidity profile, breadth of the benchmark and the size of the fund, State Street would generally employ a replication technique whereby all securities in the Index would be held as close as possible to their respective weights in the Index. Where replication is not possible or practical, State Street would look to utilize optimization techniques using a third-party risk model in seeking to meet the Account's investment objectives. As a result, the risk and return characteristics as well as the sector and industry level weights will closely mirror those of the Index. Some cash will also be held to accommodate redemption needs, however, State Street will equitize that cash using exchange traded futures in an attempt to stay fully exposed to the benchmark at all times.*

**Permitted Investments and Characteristics**

*The following list represents securities and investments, as well as other operating characteristics which may typically be used in the management of the Account.*

- *Equity securities comprising the Index which may include common stocks, preferred stocks, REITs, depository receipts, or other securities convertible into common stock.*
- *The Account may purchase securities in their initial public offerings.*
- *From time to time securities may be added to or removed from the Index. State Street may sell securities that are represented in the Index, or purchase securities that are not yet represented in the Index, prior to or after their removal or addition to the Index.*
- *Corporate warrants and rights related to index constituents.*
- *Securities received as a result of a corporate action which are not anticipated to become constituents of the Index will be sold within a reasonable time frame.*
- *The Account may at times purchase or sell index futures contracts, or options on those futures, or engage in other transactions involving the use of derivatives, in lieu of investment directly in the securities making up the Index or to enhance the Account's replication of the Index return.*
- *The Account may lend its portfolio securities and may compensate State Street or an affiliate for services provided in connection with effecting securities loans and investing related collateral.*
- *Cash and cash equivalents.*
- *The Account will not sell securities short and is not leveraged."*

3. Appendix A, Exhibit 4, Section 2.8. - Appointment of Agents and Subcustodians. The existing content in the section is noted as point (a). Point (b) is added as follows:

*(b) State Street and the Board agree to work in good faith to resolve any issues related to local tax agents in jurisdictions outside the United States.*

4. Appendix B, Exhibit 5, Section 1 - Definitions is hereby deleted and replaced as follows:

(a) *“Available Securities” means the securities of the Plan that are available for Loans pursuant to Section 3.*

(b) (b) (4)

(c) *“Borrower” means any of the entities to which Available Securities may be loaned under a Securities Loan Agreement, as described in Section 4.*

(d) *“Business Day” means any day other than a Saturday or Sunday on which (a) State Street Bank is open for the purpose of transacting business in Boston, Massachusetts and New York, New York and (b) the New York Stock Exchange is open.*

(e) *“Collateral” means cash or securities described on Schedule C to Exhibit 5 delivered by a Borrower to secure its obligations under a Securities Loan Agreement, provided that (i) with respect to State Street Bank’s securities lending program, generally, State Street Bank has determined such assets to be acceptable forms of Collateral, and (ii) the receipt of such assets as Collateral for a Loan on behalf of the Plan does not cause such Loan to be a non-exempt prohibited transaction under ERISA.*

(f) *“Collateral Reinvestment Yield” means the earnings of the Collateral Reinvestment Account divided by the amount of cash Collateral held.*

(g) *“ERISA” means the Employee Retirement Income Security Act of 1974, as amended.*

(h) *“ERISA Plan” means any employee benefit plan subject to ERISA or any trust holding the assets of one or more such plans.*

(i) *“Fee Income” means any fee income received from a Borrower, including without limitation, negative Rebate Fees paid by a Borrower in connection with Loans, premiums in connection with non-cash Collateral and fees in connection with fee for hold or other arrangements.*

(j) (b) (4)

(k) (b) (4)

- (l) *“Investment Manager” when used in any provision, means the person or entity that has discretionary authority over the investment of the Available Securities to which the provision applies.*
- (m) *“Loan” means a loan of Available Securities to a Borrower.*
- (n) *“Loaned Security” shall mean any “security” which is delivered as a Loan under a Securities Loan Agreement; provided that, if any new or different security shall be exchanged for any Loaned Security by recapitalization, merger, consolidation, or other corporate action, such new or different security shall, effective upon such exchange, be deemed to become a Loaned Security in substitution for the former Loaned Security for which such exchange was made.*
- (o) *“Market Value” of a security means the market value of such security (including, in the case of a Loaned Security that is a debt security, the accrued interest on such security) as determined by the independent pricing service designated by State Street Bank, or such other independent sources as may be selected by State Street Bank on a reasonable basis.*
- (p) 
- (q) *“Obligations” means any and all liabilities and obligations of the Plan to State Street Bank arising under or in respect of this Exhibit 5, whether mature or unmatured, contingent or otherwise, including any obligation of the Plan to pay State Street Bank or to reimburse State Street Bank for any credit, advance, overdraft or other indebtedness of the Plan to State Street Bank.*
- (r) *“PTE 06-16” means ERISA Prohibited Transaction Exemption 2006-16, 71 Fed. Reg. 63786 (October 31st, 2006) (or any successor exemption).*
- (s) *“Rebate Fee” means an amount payable with respect to Loans collateralized with cash Collateral in accordance with the applicable Securities Loan Agreements. Rebate Fees may be positive and payable by the Plan to the Borrower, or negative and payable by the Borrower to the Plan.*
- (t) *“Rebate Rate” means the interest rate applicable to cash collateral delivered by a Borrower and typically payable by Client to Borrower. In some instances, the Rebate Rate on a loan can be negative, in which case, the Borrower is paying the Rebate Rate to the Client.*
- (u) 

(v) *“Replacement Securities” means securities of the same issuer, class and denomination as Loaned Securities.*

(w) *“Securities Loan Agreement” means the agreement between a Borrower and State Street Bank (on behalf of the Plan) that governs Loans, as described in Section 5, as amended, restated, supplemented or otherwise modified in accordance therewith from time to time.*

(x) *“State Street Bank” means State Street Bank and Trust Company.*

(y) *“State Street Affiliate” means any entity that directly or indirectly through one or more intermediaries, controls State Street Bank and Trust Company or that is controlled by or is under common control with State Street Bank and Trust Company.*

5. Appendix B, Exhibit 5, Section 3 Securities to be Loaned, paragraph 2 is hereby changed from:



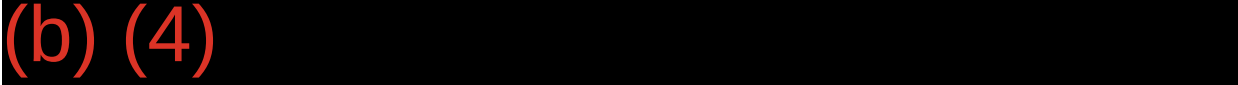
6. Appendix B, Exhibit 5, Section 9(a)(1) - Investment of Cash Collateral is hereby changed from:

*“(1) The target allocation in normal interest rate environments will be 77% to the G Fund and 23% to the CEA. The Investment Manager will rebalance the allocation to the G Fund when (A) the G Fund allocation falls below 74% back to 76% or (B) the G Fund allocation rises above 80% back to 78%. The Investment Manager will monitor the allocation to the G Fund and the CEA within the Collateral Reinvestment Account.”*

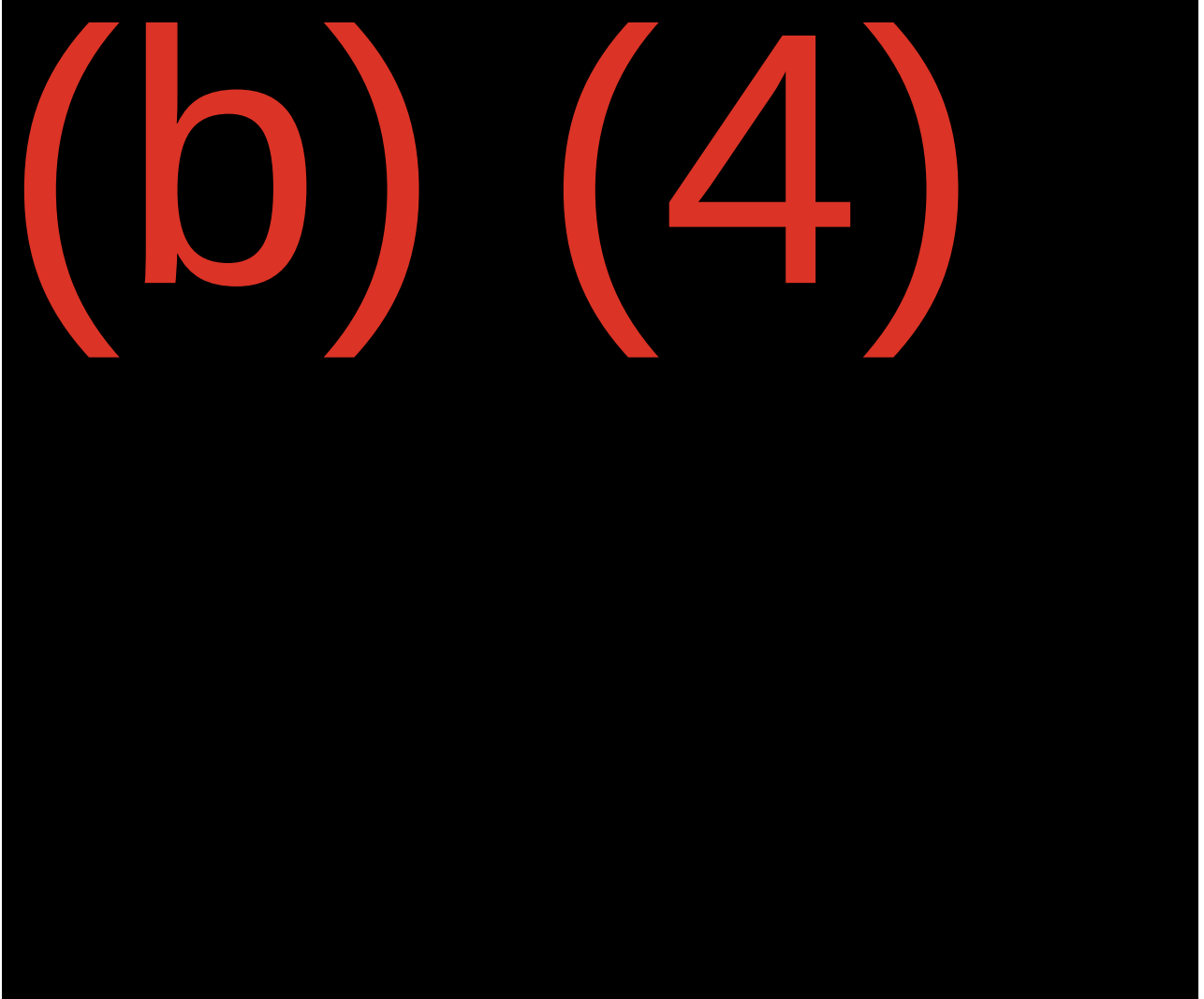
to:

*“(1) The target allocation in normal interest rate environments will be 78% to the G Fund and 22% to the CEA. The Investment Manager will rebalance the allocation to the G Fund when (A) the G Fund allocation falls below 75% back to 76% or (B) the G Fund allocation rises above 80% back to 79%. The Investment Manager will monitor the allocation to the G Fund and the CEA within the Collateral Reinvestment Account.”*

7. (b) (4)

A black rectangular redaction box covering the text of item 7.

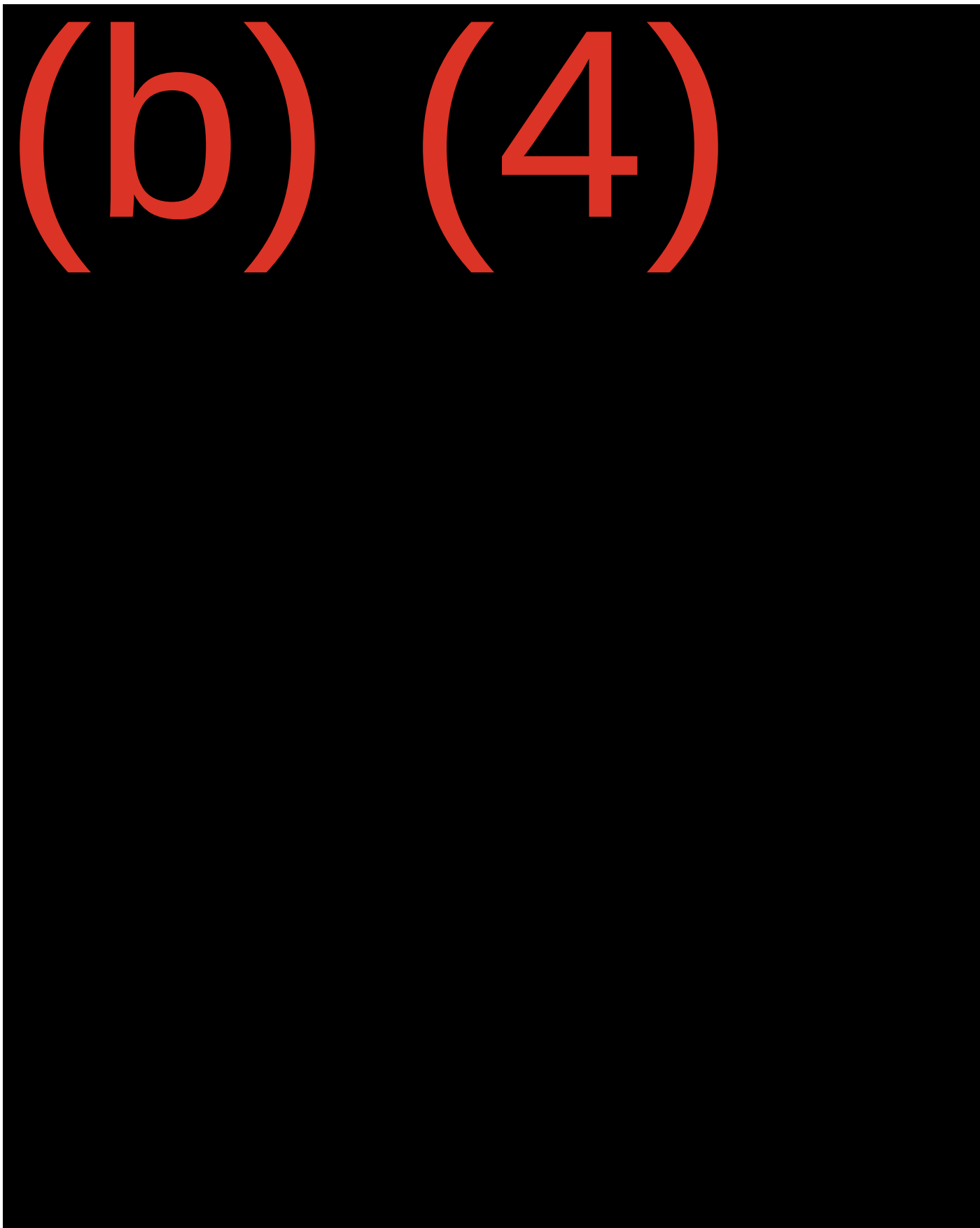
(b) (4)

A large black rectangular redaction box covering the entire content of item 7.

8. (b) (4)

A black rectangular redaction box covering the text of item 8.

(b) (4)



(b) (4)

9. Appendix B, Exhibit 5, Schedule B-1, Section I – Investment Objective is hereby changed from:

*To generate current income with respect to the cash Collateral held in the CEA (for purposes of this Schedule B-1, the “Portfolio”) while balancing simultaneous imperatives of liquidity and the ideal of maintaining a net asset value of \$1.00 per unit. For the avoidance of doubt, these Collateral Guidelines shall not be deemed to have been breached if the net asset value of the Collateral Reinvestment Account is greater than or less than \$1.00.*

to:

*To generate current income with respect to the cash Collateral held in the CEA (for purposes of this Schedule B-1, the “Portfolio”) while balancing simultaneous imperatives of liquidity, safety of principal, and the ideal of maintaining a net asset value of \$1.00 per unit. For the avoidance of doubt, these Collateral Guidelines shall not be deemed to have been breached if the net asset value of the Collateral Reinvestment Account is greater than or less than \$1.00.*

10. Appendix B, Exhibit 5, Schedule B-1, Section III – Eligible Investments. The following text is added to point (a), sub-point iii:

(b) (4)



11. Appendix B, Exhibit 5, Schedule B-1, Section III – Eligible Investments. Existing sub-point (a)iii - Other approved instruments that may be agreed in writing between State Street and the Board, is re-numbered to sub-point iv.

12. Appendix B, Exhibit 5, Schedule B-1, Section III – Eligible Investments, point (c) is hereby changed from:

*“c. The Portfolio may enter into overnight repurchase transactions and reverse repurchase transactions (for purposes of these Collateral Guidelines, collectively, “Repurchase Transactions”) collateralized by (x) Eligible Investments listed in Part III(a), and/or (y) securities or other obligations issued or guaranteed by U.S. government-sponsored enterprises such as, but not limited to, the Government National Mortgage Association, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation and the Federal Home Loan Bank, but not subject to the limitations on maturity in Part II(b)(ii).”*

to:

*“c. The Portfolio may enter into overnight repurchase transactions and reverse repurchase transactions (for purposes of these Collateral Guidelines, collectively, “Repurchase Transactions”) collateralized by securities or other obligations issued or guaranteed by the U.S. government or U.S. government-sponsored enterprises such as, but not limited to, the Government National Mortgage Association, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation and the Federal Home Loan Bank, but not subject to the limitations on maturity in Part II(b)(ii).”*

13. Appendix B, Exhibit 5, Schedule B-1, Section III – Eligible Investments, point (c), subpoint (v) is hereby changed from:

*“v. No more than 20% of the total assets of the Portfolio at the time of execution of the Repurchase Transaction may be invested in Repurchase Transactions with a single counterparty. The Portfolio may invest up to 100% of its total assets in Repurchase Transactions.”*

to:

*“v. No more than 25% of the total assets of the Portfolio at the time of execution of the Repurchase Transaction may be invested in Repurchase Transactions with a single counterparty. The Portfolio may invest up to 100% of its total assets in Repurchase Transactions.”*

The total value of this contract remains unchanged. All other terms and conditions remain unchanged and in full force and effect.

## **Section B: Supplies or Services and Prices**

### **B.1. Background**

The Federal Retirement Investment Board (FRTIB or Agency) is an independent Federal government agency in the Executive Branch created by the Federal Employees' Retirement System Act of 1986 (FERSA). The Thrift Savings Plan (TSP) is a retirement savings and investment plan for Federal civilian employees and members of the uniformed services that offers its participants the same type of savings and tax benefits that many private corporations offer their employees under I.R.C.§401(k) plans. The TSP is the largest participant-directed defined contribution plan in the world. The mission of the FRTIB is to administer the TSP solely in the interest of the participants and beneficiaries.

The FRTIB is a self-funded agency with independent budgetary authority that receives no annual appropriations from Congress. FRTIB is not strictly bound to adhere to the Federal Acquisition Regulation (FAR). However, FRTIB procurements will largely adhere to the FAR, unless doing so might infringe upon the Agency's fiduciary obligations under FERSA. FRTIB has adopted the FAR as its primary contracting policy and procedures for procuring its goods and services, with defined deviations tailored to the FRTIB's unique role.

*The Thrift Federal Acquisition Supplement (T-FAS) specifies when the Agency's policies and practices deviate from the FAR. See link to T-FAS below.*

<https://www.frtib.gov/Procurement/DoingBusiness.html>

### **B.2. Supplies or Services**

The FRTIB intends to select two (2) Contractors to provide professional investment management services, securities lending agency services, and custody and administrative services for the TSP's Fixed Income Index Investment Fund (F Fund), Common Stock Index Investment Fund (C Fund), Small Capitalization Stock Index Investment Fund (S Fund), and International Stock Index Investment Fund (I Fund) (Any reference hereafter to Funds or TSP Funds means the F Fund, C Fund, S Fund and I Fund collectively). This Contract identifies the two (2) contractors as Contractor A and Contractor B.

Only two (2) contracts will be awarded for these services, one to Contractor A and one to Contractor B, and work shall be performed in accordance with all sections of the RFP and the resulting contract for each.

Once chosen, Contractor A and Contractor B shall manage the following target market value percentages of each of the four (4) TSP Funds.

| TSP Fund Name | Contractor A target percentage | Contractor B target percentage |
|---------------|--------------------------------|--------------------------------|
| F Fund        | 80%                            | 20%                            |
| C Fund        | 90%                            | 10%                            |
| S Fund        | 80%                            | 20%                            |
| I Fund        | 80%                            | 20%*                           |

\* (Modification P0002, Effective 8/1/2022)

If for reasons of local regulatory restrictions or events in emerging markets countries, and after working in good faith with Contractor(s), the FRTIB is unable to reach a satisfactory solution for Contractor B to gain or retain appropriate exposure for tracking the Replacement International Index, the target allocation percentage of the I Fund for Contractor A will be reset to 100% and for Contractor B will be reset to 0.0%. FRTIB will have the sole right to final determination of the feasibility of establishing appropriate exposure.

The FRTIB will seek to maintain these target percentage allocations throughout the duration of the respective contracts, with the exception of circumstances as indicated in this RFP.

The Contractor will sign this contract with the FRTIB to provide services pertaining to the Funds. For clarity, each Contractor's services shall be inclusive of the provision of investment management services, securities lending agency services, custody and administrative services, and all others enumerated in the RFP and the resulting contract. Remuneration for Contractor will neither be earned nor paid until Contractor has investment management discretion over Fund assets whose performance is being measured relative to the respective benchmarks. Fee calculations for assets of Funds under discretionary management by the Contractor may not begin at the same time; rather, they will be subject to the timing of successful transition of assets as per the negotiated transition plan.

### **B.3. Contract Structure**

#### **B.3.1 – Contractor B**

| Contract Structure |                 |                                                            |          |      |     |
|--------------------|-----------------|------------------------------------------------------------|----------|------|-----|
| CLIN               | Contract Period | Description                                                | Quantity | Unit | Fee |
| 0001               | Base Period     | Investment Management, Securities Lending, and Custody and |          |      |     |

|       |                 |                                                                               |    |        |                                            |
|-------|-----------------|-------------------------------------------------------------------------------|----|--------|--------------------------------------------|
|       |                 | Administrative Services                                                       |    |        |                                            |
| 0001A | Base Period     | F Fund                                                                        | 24 | Months | See Section J - Attachment 003: Schedule A |
| 0001B | Base Period     | C Fund                                                                        | 24 | Months | See Section J - Attachment 003: Schedule A |
| 0001C | Base Period     | S Fund                                                                        | 24 | Months | See Section J - Attachment 003: Schedule A |
| 0001D | Base Period     | I Fund                                                                        | 24 | Months | See Section J - Attachment 003: Schedule A |
| 1001  | Option Period 1 | Investment Management Securities Lending, and Custody Administrative Services |    |        |                                            |
| 1001A | Option Period 1 | F Fund                                                                        | 24 | Months | See Section J - Attachment 003: Schedule A |

|       |                 |                                                                                    |    |        |                                            |
|-------|-----------------|------------------------------------------------------------------------------------|----|--------|--------------------------------------------|
| 1001B | Option Period 1 | C Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 1001C | Option Period 1 | S Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 1001D | Option Period 1 | I Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 2001  | Option Period 2 | Investment Management, Securities Lending, and Custody and Administrative Services |    |        |                                            |
| 2001A | Option Period 2 | F Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 2001B | Option Period 2 | C Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |

|       |                 |                                                                                    |    |        |                                            |
|-------|-----------------|------------------------------------------------------------------------------------|----|--------|--------------------------------------------|
| 2001C | Option Period 2 | S Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 2001D | Option Period 2 | I Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 3001  | Option Period 3 | Investment Management, Securities Lending, and Custody and Administrative Services |    |        |                                            |
| 3001A | Option Period 3 | F Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 3001B | Option Period 3 | C Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 3001C | Option Period 3 | S Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |

|       |                 |                                                                                    |    |        |                                            |
|-------|-----------------|------------------------------------------------------------------------------------|----|--------|--------------------------------------------|
| 3001D | Option Period 3 | I Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 4001  | Option Period 4 | Investment Management, Securities Lending, and Custody and Administrative Services |    |        |                                            |
| 4001A | Option Period 4 | F Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 4001B | Option Period 4 | C Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 4001C | Option Period 4 | S Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |
| 4001D | Option Period 4 | I Fund                                                                             | 24 | Months | See Section J - Attachment 003: Schedule A |

## **Section C: Descriptions and Specifications**

### **C.1. Scope of Work**

#### **1. Mission**

The FRTIB, created by the Federal Employees' Retirement System Act of 1986, administers the TSP for Federal employees. The TSP is a defined contribution plan similar to 401(k) plans in the private sector.

#### **2. Scope**

The Contractor shall receive and invest monies representing cash flows in a manner consistent with the specifications, terms, and conditions set forth in the Statement of Work (SOW) and contract awarded as a result of this RFP. The work to be performed under this SOW related to the Funds shall be inclusive of the provision of investment management services, securities lending agency services, custody and administrative services, and all others enumerated in this RFP and the resulting contract.

#### **3. Statutory Requirements**

Title 5 of the United States Code, §§ 8438, 8472, and 8475, provides the major statutory requirements for TSP investments.

#### **4. Definitions**

##### **a. Contractor**

Use of the terms "Contractor," "Contractors," "Contractor A," and "Contractor B" in this contract is intended to apply collectively to the investment manager and any subcontractors or other entities, regardless of the affiliation with the manager, whom the manager may retain to provide the services described in this document, including custodian duties.

##### **b. Thrift Savings Plan (TSP)**

The TSP, which is administered by the FRTIB, is a retirement plan similar to a 401(k) plan, offered to Federal employees. The following investment Funds are offered within the TSP. Each Fund is held as a separate account with the TSP as each Fund's sole owner.

| <b><u>Fund</u></b>                                                 | <b><u>Description/Benchmark</u></b>                                                                                                                                                                                                                                                                                                                                   |
|--------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Government Securities Investment Fund ( <i>G Fund</i> )            | G Fund invests exclusively in a nonmarketable short-term U.S. Treasury security that is specially issued to the TSP. The earnings consist entirely of interest income on the security. The G Fund interest rate calculation is based on the weighted average yield of all outstanding Treasury notes and bonds with 4 or more years to maturity and is reset monthly. |
| Fixed Income Index Investment Fund ( <i>F Fund</i> )               | Bloomberg Barclays U.S. Aggregate Bond Index                                                                                                                                                                                                                                                                                                                          |
| Common Stock Index Investment Fund ( <i>C Fund</i> )               | S&P 500 Index                                                                                                                                                                                                                                                                                                                                                         |
| Small Capitalization Stock Index Investment Fund ( <i>S Fund</i> ) | Dow Jones U.S. Completion Total Stock Market Index                                                                                                                                                                                                                                                                                                                    |
| International Stock Index Investment Fund ( <i>I Fund</i> )        | MSCI EAFE Index (to change to the Replacement International Index)<br>(Modification P0002, Effective 8/1/2022)                                                                                                                                                                                                                                                        |

NOTE: Throughout this Contract, any reference to returns of the MSCI EAFE Index and the Replacement International Index is on a net of dividend withholding taxes basis as calculated by MSCI. The same shall apply to all international indices cited by Offerors in responses to the attached questionnaire. (Modification P0002, Effective 8/1/2022)

In addition to the above Fund options, the TSP offers participants Lifecycle Funds options (*L Funds*) with predetermined investment mixes across major asset classes designed to meet participants' investment objectives over various time horizons. There are currently five (5) L Funds that provide a range of target retirement dates. The L Funds invest exclusively in the G, F, C, S, and I Funds.

All of the TSP Funds are pre-notified funds, meaning participant orders are cut off at 12:00 noon ET, aggregated, and combined with other activity, resulting in investment orders that are placed with the index fund manager by 2pm ET for execution on that day. TSP orders will be settled on the next business day (T+1).

The Funds participate in securities lending. The cash collateral received against securities loans made from those Funds is invested in a pool that is primarily invested in the G Fund. The cutoff for G Fund transactions each business day is 1:30 PM, ET. That is, in order for the Agency to redeem cash collateral from the G Fund, the Agency must have notice by 1:30 PM one business day prior to the transfer. Similarly, for cash collateral to be deposited into the G Fund, the credit to the Agency's Treasury account must be received by 1:30 PM ET, in order to be included in that day's investment in the G Fund.

Note also that the G Fund on occasion has become unavailable for securities lending collateral reinvestment for periods of time when the U.S. Government has reached a debt ceiling impasse and begins exercising extraordinary measures in order to continue to fund the government's business.

## **C.2. Summary of Requirements**

The Contractor shall:

### **1. Provide Investment Management Services for the TSP Funds**

- Accept responsibility as a fiduciary pursuant to § 8477 of Title 5 of the United States Code for its acts and omissions in connection with the selection, purchase, investment, retention, management, and disposition of TSP assets and handle all fiduciary responsibilities described in § 8477 and § 8474 or other applicable laws related to the management or handling of financial assets. Award of this contract resulting from RFP # TIB-2019-RFP-0004 shall constitute an allocation by the Executive Director of certain responsibilities in accordance with § 2584.8477(e)-3(b) of title 29, Code of Federal Regulations. The Executive Director and the appropriate representative of the Contractor shall complete this allocation by affixing their signatures to Attachment 001
- Establish a daily-valued, unitized separate account vehicle, that accommodates daily cash flows, for each of the following four passively managed investment mandates:
  - i. F Fund separate account – a Bloomberg Barclays U.S. Aggregate Bond Index strategy,
  - ii. C Fund separate account – a Standard & Poor's 500 Stock Index strategy,
  - iii. S Fund separate account – a Dow Jones U.S. Completion Total Stock

Market Index strategy, and

iv. I Fund separate account – a MSCI EAFE Index strategy. Following I Fund benchmark transition, a Replacement International Index strategy in a separate account vehicle that accommodates daily cash flows.

(Modification P0002, Effective 8/1/2022)

- Beginning with the date of receipt of first assets or cash, achieve, on a time-weighted basis, investment performance that closely tracks that of the underlying indices, as measured and published by the index providers. The FRTIB monitors tracking error relative to the index on a monthly basis. Contractor shall secure appropriate licenses with index providers at Contractor's cost for all indices, both permanent and transitional (for the I Fund). The Contractor shall note that returns are to be reported net of fees and expenses and will be subject to public disclosure at monthly FRTIB Board Meetings and as otherwise deemed necessary by the FRTIB.
- Accommodate daily trade orders; orders will be pre-notified by 2:00 p.m. ET on the trade date, and settled the next business day (T+1).
- Manage liquidity; the Contractor shall manage the assets so as to minimize tracking error to the index while also providing sufficient liquidity for daily cash flows.
- Execute all trades efficiently, with an emphasis on seeking best execution and compliance with fiduciary standards. Minimize trading costs, and upon request, provide an explanation of transactions incurring trading costs above the average trading costs associated with managing assets benchmarked to the respective index.
- Notify the FRTIB of fair value pricing events the same business day as the day the events occur.
- Vote all proxies and address all corporate actions in a manner which will result in maximum financial benefits to TSP participants and in accordance with fiduciary responsibilities.
- Notify the FRTIB of material violations of laws and regulations and questionable ethics practices of broker-dealers and other counterparties with which the Contractor transacts on behalf of the TSP Funds for the purpose of

gaining or reducing portfolio exposures, including for securities lending, within two business days of when Contractor becomes aware of such violations through public filings or media reporting. Materiality is reasonably determined by the Contractor's designated client service contacts.

- Disclose all potential and actual conflicts of interest as known and annually disclose all sources of firm revenue and all business relationships and affiliations.
- Accept financial responsibility for errors found to be caused by the Contractor and make appropriate remedy such that the Funds and participants will be made whole. Contractor will not be held responsible for TSP costs related to administratively applying or reprocessing of financial solutions associated with Contractor errors.
- Acknowledge or respond to all FRTIB inquiries by the close of business on the day received if received by the Contractor by noon on a business day; otherwise, by noon of the following business day. In this case, times cited are in the Contractor's time zone from which the FRTIB relationship is serviced.

## **2. Provide Custody and Administrative Services**

- The Contractor (which as defined in Section C.1.4.a can include subcontractors) shall provide separate account vehicles for the custody of the above portfolios and perform necessary administrative services relating to custody of the portfolios. The Contractor shall unitize the separate account vehicles for the purpose of reporting settled trade orders and balances.
- Act as a depository and custodian holding all assets as received from FRTIB. The Contractor shall hold such assets and provide services including fund administration, fund accounting, fund valuation net of all cost except Agency administrative costs, claiming of dividend tax rebates, the filing of claims on shareholder class action litigation and the processing of amounts thereby received, and "middle office services" such as trade confirmations and reconciliations.
- Provide historical trade data retention services supportive of future class action claims on behalf of the TSP Funds.

- Be responsible for establishing all accounts in non-U.S. domiciles as needed, at the Contractor's expense, and for providing those same services that it provides for U.S. based accounts, as enumerated above.
- Provide transition management services as discussed in Sections C.4. and C.5. of this Statement of Work.
- Accept financial responsibility for errors found to be caused by the Contractor as specified in C.2.1.
- Engage an independent auditor, at the Contractor's expense, to provide audited financial statements for each of the separate accounts.

### **3. Serve as a Securities Lending Agent**

- Lend securities in the separate account index fund portfolios managed on behalf of the TSP so as to generate additional income for the TSP Funds.
- Manage a custom cash collateral reinvestment portfolio for the reinvestment of a portion of the cash collateral received against security loans.
- Provide a solution that meets ongoing liquidity needs associated with cash collateral reinvestment activities, given the liquidity constraints of the G Fund.
- Be responsible for all investment and operational activities relating to securities lending, including, but not limited to, approving counterparty borrowers, monitoring counterparty exposure, processing security recalls, etc.
- Indemnify the TSP against all losses resulting from counterparty/borrower default.
- Establish a list of eligible borrowers and their agents and a maximum amount that may be borrowed by each borrower. Conduct ongoing reviews of borrowers' qualifications.
- Require that all loans of securities be collateralized by either cash or U.S. Government securities.
- Require competitive market levels of collateralization for domestic and

international securities, including accrued income. Monitor collateral levels daily. Obtain additional collateral if mark-to-market values fall below acceptable levels.

- Collect all interest, dividends, or other distributions with respect to all loaned securities.
- To the extent TSP's securities are lent to the Contractor's affiliated entities, the Contractor shall have processes to ensure that loans made to such affiliates are in accordance with applicable laws and regulations, and are not economically disadvantageous to the TSP. The Contractor shall disclose the existence of any such loans to FRTIB within 30 days.
- Accept financial responsibility for errors found to be caused by the Contractor as specified in C.2.1.

#### **4. Transition the I Fund's benchmark index** (Modification P0002, Effective 8/1/2022)

- The "Replacement International Index" as referred to in this document and tertiary documents is at the discretion of the FRTIB and its delegated representatives. Once a Replacement International Index is identified in writing by the FRTIB, Contractors A and B shall support the execution of this conversion as described herein. Any reference to "MSCI ACWI ex-US IMI Index" in this document or related documents associated with this contract shall be re-interpreted to read "Replacement International Index".  
(Modification P0002, Effective 8/1/2022)
- Provide transition services, with respect to the assets managed by Contractor B, to change the I Fund's portfolio holdings managed by Contractor B to reflect an index strategy that tracks the Replacement International Index from an index strategy that tracks the MSCI EAFE Index within an agreed upon transition period over a predetermined number of stages between the FRTIB and investment manager. (Modification P0002, Effective 8/1/2022)
- Provide investment management services as enumerated in C.2.1 for the TSP I Fund during a period in which the portfolio will track an agreed upon custom transition benchmark over an agreed upon time period and an agreed upon number of stages as it transforms from the MSCI EAFE Index to the Replacement International Index.

If for any reason the FRTIB determines that a custom transition benchmark is not needed, the requirement of managing to a custom transition benchmark will be disregarded. (Modification P0002, Effective 8/1/2022)

- Measure performance and provide attribution against the custom transition benchmark index over the transition period.
- Accept financial responsibility for errors found to be caused by the Contractor as specified in C.2.1.

## **5. Access to Data and Contractor Personnel**

- Provide a primary point of contact to work with the FRTIB Contracting Officer's Representative (COR) for items required in this contract resulting from the RFP.
- Provide a primary point of contact to work with the FRTIB Contracting Officer (CO) for contract related items or issues.
- Provide FRTIB staff access to all senior investment personnel.
- Provide the FRTIB's auditor access to the firm's personnel, operations, and records to perform the Agency's annual financial audit and semiannual financial reviews. This includes providing direct confirmations requested by the independent auditor, audited financial statements, and other documents such as audit reports on internal controls.
- Provide the Department of Labor, and its authorized contractor(s), access to the firm's personnel, operations, and records to perform fiduciary compliance audit(s).
- The FRTIB may require that Contractor personnel attend meetings in Washington, D.C. or other locations as required. Travel costs will not be reimbursed separately, rather the negotiated fees under the contract shall include all expenses including travel, lodging, and other allowable costs.

## **6. Disaster Recovery and Business Continuity Plans**

- The contractor (and any supporting subcontractors) shall have a Business Continuity Management System (BCMS), including Information Technology Disaster Recovery Plans, that meets a business continuity industry professional standard (e.g., ISO 22301, NIST SP 800-34r1, NFPA 1600,) specifying requirements to plan, establish, implement, operate, monitor, exercise and test, review, maintain and continually improve a documented management system to protect against, reduce the likelihood of occurrence, prepare for, respond to, and recover from disruptive incidents when they arise. The contractor's BCMS shall be appropriate to its needs and meet FRTIB recovery requirements for critical business processes. The contractor shall notify FRTIB as soon as feasible about any disruptive incidents.
- The contractor shall annually provide information on audit, assessment, or testing results that demonstrate whether the contractor's BCMS conforms to: 1) FRTIB requirements and 2) the requirements of the applicable business continuity standards.

## **7. Service and Organizational Controls (SOC) Audits**

The Contractor must ensure the existence of a comprehensive and up to date control environment for itself and its subcontractors/partners involved in this contract and make representations to the FRTIB. This representation is made by a SOC report. Contractor must annually perform a SOC 1 Type 2 audit. A registered independent auditing firm in good standing with Public Company Accounting Oversight Board will perform the audit. The Contractor will provide the:

### **Auditor's SOC Report**

- Auditor's scope
- Description of controls
- Testing results and opinion
- Any recommendations and any required planned or completed corrective actions;

### **Contractor Corrective Actions (if applicable)**

- Corrective action plans with committed delivery dates.

## **8. Personnel and Points of Contact**

The Contractor shall provide skilled personnel required for the effective and efficient performance of the contract resulting from the RFP. The Contractor shall

also designate both a primary point of contact that is available during normal business hours and an emergency point of contact that will be on-call during non-business hours in case of emergencies. These individuals may, but are not required to, be the same person.

### **C.3. Requirements for FRTIB Visits to the Contractor Site**

At least annually, the FRTIB performs and documents a due diligence site visit at the Contractor site. The review topics shall include, but not be limited to, a discussion of the firm (e.g., firm status, firm-wide operational changes, new initiatives or new developments), investment staff review (personnel changes/realignments), process review (e.g., changes in strategy, enhancement of processes, and trading issues, if any), a review of Fund performance (e.g., performance relative to the appropriate benchmark), and a review of securities lending performance that includes a discussion of relevant developments. It is expected that each site visit agenda will also include one or more special topics reflective of initiatives, structural changes, or other matters deemed important by either the FRTIB or the Contractor.

The Contractor shall provide the FRTIB with data and site access for the purpose of due diligence visits.

### **C.4. Phase-In/Phase-Out Requirements**

Services under this contract resulting from the RFP are vital to the FRTIB and shall be continued without interruption. The Contractor shall comply with the following:

1. The Contractor shall exercise its best efforts and cooperation to effect an orderly and efficient transition during both the phase-in and phase-out phases (if applicable).
2. The Contractor shall, upon the Contracting Officer's written notice, (1) furnish phase-in services for up to 180 calendar days after award of this contract resulting from the RFP, and (2) negotiate in good faith a plan with the predecessor Contractor and the FRTIB to determine the nature and extent of phase-in services required. Phase-in services include, but are not limited to, development and execution of a plan for transition of asset management, securities lending, and custody and administrative services. The Contracting Officer reviews and provides approval to the plan. The Contractor shall provide sufficient experienced personnel during the phase-in period to ensure that the services called for by this contract resulting from the RFP are maintained at the

required level of proficiency.

3. If the Contractor is not a successful offeror on an RFP subsequent to this contract, then the Contractor shall, upon the Contracting Officer's written notice, (1) furnish phase-out services for up to 180 calendar days after the contract expires, and (2) negotiate in good faith a plan with a successor, or successors, and the FRTIB to determine the nature and extent of phase-out services required. Phase-out services include, but are not limited to, development and execution of a plan for transition of asset management, securities lending, and custody and administrative services. The plan shall specify a date for transferring responsibilities of work described in the plan. The Contracting Officer reviews and provides approval to the plan. The Contractor shall provide sufficient experienced personnel during the phase-out period to ensure that the services called for by the contract are maintained at the required level of proficiency. The Contractor shall allow as many personnel as practicable to remain on the job to help the successor(s) maintain the continuity and consistency of the services required by this agreement.  
(Modification P0002, Effective 8/1/2022)
4. In the event of termination, the Contractor shall transfer the assets to a separate or commingled account on the books of the Contractor or to a separate or commingled account with another Contractor at the request of the FRTIB upon 30 days' written notice.
5. In advance of receipt of the initial TSP assets, the Contractor shall participate in testing the process for transmission of the electronic data file containing the daily earnings. Such testing includes, but is not limited to, earnings for the offered Fund(s) based on hypothetical balances provided by the FRTIB, and provision of any technical assistance required to establish the electronic data link with the Agency's recordkeeping system.
6. The Contractor shall accept the in-kind transfer of assets from the prior Contractor into the proposed account at no additional cost to the TSP.
7. The Contractor shall be responsible for all fees and costs associated with the preparation for transfer of assets, the transfer of assets and the establishment of accounts. Further, the Contractor shall be responsible for all costs related to operational errors involved in the transfer of assets. In the event of fault being indeterminate, the receiving Contractor or Contractors and the transferring Contractor agree to equal sharing of liability for all errors in processing the

transfer of assets from one to the other(s).

8. The Contractor shall work with all independent agents or consultants authorized by the FRTIB to represent and assist the FRTIB with the process of seamlessly transitioning assets from one Contractor to another Contractor(s).
9. The Contractor shall obtain from the Department of Labor any required exemptions from prohibited transaction restrictions contained in FERSA (e.g., ability to utilize exchange traded funds), without charge to the TSP.
10. The Contractor shall provide information on any insurance policies that protect TSP assets against loss resulting from violations of fiduciary duty or errors and omissions. The Contractor shall provide information demonstrating compliance with the bonding requirements of § 8478 of Title 5 of the United States Code.

#### **C.5. Targeted Allocations of Contractor A and Contractor B**

In addition to the foregoing in Section C.4 Phase-In/Phase-Out Requirements, the following shall apply with regard to the intended two-manager structure applied to each of the Funds: (Modification P0002, Effective 8/1/2022)

1. Initial funding of Contractor A and Contractor B: Contractor shall provide transition management services until transition is complete for each Fund, including those services, resources, accommodations, and obligations deemed applicable from Section C.4 Phase-In/Phase-Out Requirements. There will be no performance holiday, meaning no period during which Fund performance is not expected to continue to track the Funds' respective indices. There will be no blackout period, meaning no period during which the Funds will be shielded from accepting subscriptions or funding redemptions.  
(Modification P0002, Effective 8/1/2022)

Initial funding for the F Fund, the C Fund, and the S Fund will be made by 1) a one-time simultaneous in-kind transfer of securities and cash on as close to a pro-rata basis as is reasonably possible from the Funds' current Contractor to Contractor A and to Contractor B or 2) depending on FRTIB's and Contractors' views of administrative ease, costs, and avoidance of operational errors, a sequential approach by Contractor and/or by Fund may be taken. Deviations from pro-rata transfer of assets may result if it is determined that an optimization, sampling, all cash, partial cash, schedule of cash transfers, or other approach may secure greater administrative ease and operational error avoidance for all parties while also protecting the interest of TSP participants (i.e. keeping costs low).

Initial funding for the I Fund to Contractor A will be made by a one-time in-kind transfer of all securities and cash to Contractor A from the existing Contractor. Initial funding for the I Fund to Contractor B will be made by a one-time pro-rata transfer of securities and cash as practicable or a one-time transfer of USD \$1 billion (greater, if agreeable) facilitated by the FRTIB from Contractor A to Contractor B. Such a one-time transfer to Contractor B will occur only upon decision of the FRTIB and resulting notification in writing by a Contracting Officer Representative appointed to this contractor by the Senior Procurement Executive. (Modification P0002, Effective 8/1/2022)

Subsequent to the transfer to Contractor B and as needed, Contractor B shall receive additional funding through cash flows resulting from positive net daily transactions (defined as participant and employer related transactions of all types and L Fund rebalancing transactions) until the target percentage is reached, estimated to be over a period of 6 months to not more than 12 months. Until the target percentage for Contractor B is reached for the I Fund, all negative net daily transactions shall be sourced from Contractor A. If deemed necessary, the FRTIB may further facilitate funding of Contractor B to target by scheduling redemptions from Contractor A and deposits to Contractor B. As above, deviations in the I Fund funding methodology may result if it is determined that an optimization, sampling, all cash or partial cash, schedule of cash transfers, or other approach may secure greater administrative ease and operational error avoidance for all parties while also protecting the interest of TSP participants (i.e. keeping costs low). Solutions related to local country restrictions will be considered as required.

The FRTIB may choose to transfer assets from Contractor A to Contractor B regardless of whether or not there has been any I Fund index change prior to the transfer. No anticipated change in the I Fund benchmark will be required for there to be a transfer of assets from Contractor A to Contractor B. (Modification P0002, Effective 8/1/2022)

Target percentages for the F, C, S, and I Funds will be considered reached when within 0.1%.

All decisions ultimately remain at the complete discretion of the FRTIB.

2. Deviation from target percentages: Once all target percentages are reached, the FRTIB will monitor the allocations to Contractor targets on at least a quarterly basis. Upon review and based on reaching a threshold of absolute 1% deviation from the target percentage allocation as determined by the FRTIB, the FRTIB will direct net daily transactions to bring Contractor allocations in line with target percentages by directing all positive net daily transactions to the Contractor requiring an increase in assets and sourcing all negative net daily transactions from the Contractor requiring a decrease in assets until target percentages are

reached to within 0.1%. If deemed necessary or an improvement to the process, the FRTIB in its discretion may effect all or part of the adjustment to target percentages by scheduling cash redemptions and cash deposits to the respective Contractors. The FRTIB will provide notification of at least five business days prior to deviating from pro-rata allocation of net daily transactions in order to bring Contractor allocations in line with targets.

(Modification P0002, Effective 8/1/2022)

3. Allocation of daily net transactions: When Contractor allocations are deemed to be acceptably in line with targets, net daily transactions will be directed to the Contractors (or sourced from the Contractors as the case may be) on a pro-rata basis with their assigned target allocation percentages.
4. Periodic review: The FRTIB reviews the Contractors on a periodic basis for investment performance, securities lending performance, custody and administrative services, as well as other deliverables, but, not less than annually. The FRTIB also periodically reviews statistical analysis of TSP net daily transactions, but, not less than every two years. As a result of either of the two reviews, the FRTIB may in its sole discretion, and without competitive re-bidding or consent from the Contractor, re-target percentages so that Contractor B will manage no more than 30% and no less than 10% of the assets of any one Fund. Notwithstanding the foregoing, changes in target allocations are not expected during the Contract period. Adjustment to new targets will be made effective through the directing of net daily transactions, by directing all positive net daily transactions to the Contractor requiring an increase in assets and directing all negative net daily transactions from the Contractor requiring a decrease in assets. If deemed necessary or an improvement to the process, the FRTIB in its discretion may effect all or part of the adjustment to target percentages by scheduling cash redemptions and cash deposits to the respective Contractors. The FRTIB will provide notification of at least 30 calendar days prior to beginning re-targeting attributable to periodic performance and transactions reviews.  
(Modification P0002, Effective 8/1/2022)
5. Termination of Contractor: The FRTIB may, for any reason with thirty days' notice (earlier if deemed urgent), direct that the Contractor be terminated and that all TSP Funds under management with the Contractor be transferred to the discretion of the other Contractor. Transfer will occur as soon as practicable with the full assistance of the Contractor relinquishing discretion over assets, as outlined above in C.4. Phase-In/Phase-Out Requirements. Until the transition is completed or a successor Contractor found, the receiving Contractor shall be immediately responsible for all net daily transactions upon notice from the FRTIB. If Contractor A is terminated, Contractor B shall assume management of 100% of each Fund's assets without re-competition. Following Contractor B assuming management of 100% of each Fund's assets, at the discretion of the FRTIB, a re-

competition may be conducted to find a new Contractor to assume the majority or the minority position. Once established and funded, the two-Contractor structure will remain in place at the discretion of the FRTIB, but, no longer than the final date of the existing Contract with original Contractor B. If Contractor B is terminated, all assets will similarly transfer to Contractor A without re-competition. Following Contractor A assuming management of 100% of each Fund's assets, at the discretion of the FRTIB, a re-competition may be conducted to find a new Contractor to assume the minority position. Once established and funded, the two-Contractor structure will remain in place at the discretion of the FRTIB, but, no longer than the final date of the Contract with original Contractor A.

(Modification P0002, Effective 8/1/2022)

6. Contractor suspension of operations: If for any reason either Contractor A or Contractor B experiences a suspension of operations such that it is unable to perform its duties under the contract, the other Contractor shall assume immediate full responsibility for all net daily transactions until the condition is resolved or it is determined that the Contractor experiencing the suspension should be terminated.

#### **Section D: Packaging and Marking**

Not Applicable.

#### **Section E: Inspection and Acceptance**

The basis for acceptance shall be in compliance with the requirements set forth in the award of this contract. The Contracting Officer Representative (COR) will have the right to reject or require correction of any deficiencies found in deliverables. In the event of rejection of any deliverable, the Contractor will be notified in writing by the COR of the specific reasons the deliverable was rejected. If no comments from the COR are provided within ten (10) business days of receipt, the deliverable will be deemed to have been accepted by the Agency. Documents not approved by the FRTIB must be resubmitted with changes within 10 business days and the FRTIB will have another 10 business-day review period. If after the third submission the deliverable is unacceptable to FRTIB, the Program Manager, COR, and CO will meet to discuss corrective actions.

#### **Section F: Performance/Deliverables**

##### **F.1. Period of Performance**

The period of performance for this contract shall be a twenty-four-month Base Period from the effective award date with four (4) twenty-four-month Option Periods. This contract shall expire 120 months from award or at the end of the agreement period, whichever is earlier. Periods of performance are identified as follows:

- Base Period – October 21, 2020 through October 20, 2022
- Option Period 1 – October 21, 2022 through October 20, 2024
- Option Period 2 – October 21, 2024 through October 20, 2026
- Option Period 3 – October 21, 2026 through October 20, 2028
- Option Period 4 – October 21, 2028 through October 20, 2030

## **F.2. Place of Performance**

Work shall be performed at the Contractor's facilities. The FRTIB may request that Contractor staff meet with FRTIB employees and board members. Access to the FRTIB Headquarters (77 K Street NE Washington, DC 20002) will be granted as needed based on mutually agreed upon times between the contractor and the FRTIB.

## **F.3. Deliverables**

The deliverable reports listed below shall be reviewed and updated every year to reflect changes in policies and procedures and any applicable regulatory guidance.

### **1. Daily Reports**

Daily Reports shall be submitted and include information as follows:

- a. Provide, no later than 3:00 p.m. ET the next business day after each trade date, a statement of assets and transaction summary report. The asset statement shall be comprised of a summary of the cost and market value of the assets held in the separate account reported in terms of the number of units of the unitized separate account that are held, and their cost, current unit value and total market value. The transaction summary report detailing each trade shall include the number of units purchased or sold, unit value, and trading costs (including purchased/sold accrued interest where applicable) and trading cost per unit. The unit value shall reflect dividends and other income credited since the last trade.
- b. Submit earnings for each separate account daily, electronically in a format provided by the FRTIB. Earnings are calculated as of each TSP business day. Total net earnings include capital gain or loss (net of trading costs), dividend income, securities lending income, any income from the cash

- account, or any other income. The daily earnings figures are to be transmitted as soon as available each business day, but no later than 6:00 p.m. ET. Procedures must be established for notifying the Agency and the TSP record keeper if the earnings figures are not transmitted by 6:00 p.m. ET.
- c. Submit the market value of the assets as of the close of each TSP business day. The market value shall be reported in terms of the number of units held in the separate account and the current value of the units.
  - d. Provide the estimated income from securities lending activity each day by 6:00 a.m. ET the next morning.
  - e. Make available a daily report of securities lending collateral, identifying daily collateral required and pledged.

## **2. Monthly Reports**

Monthly Reports shall be submitted and include information as follows:

- a. Provide investment activity reports that include, at a unitized level, all investment activity for the period: purchases and sales, with number of units, price, total cost/proceeds and realized gain or loss. This report must be available on a daily basis showing cumulative month to date activity.
- b. Provide website access to detailed current and historical holdings and transactions on a security level basis on at least a monthly basis.
- c. Provide investment performance tracking reports and attribution reports - Performance results shall be time-weighted rates of return for the separate account by month, calendar year to date, and for the last 12 months, presented with the corresponding benchmark returns and differences in period performance on the first business day after month end. The Contractor shall also provide 3, 5, and 10 year rates of return, if available. The Contractor shall provide since inception and other period performance and attribution calculations as requested. Note that performance reporting shall be on a net of all fees, expenses, and trading costs basis. For clarity, this includes reporting performance after netting transaction costs resulting from L Fund rebalancing and participant and employer driven transactions

communicated to the Contractor daily.

- d. Provide a performance attribution report by month and year to date within 10 business days of each month end.
- e. Provide the Agency with a report showing the characteristics of the portfolio at month end as compared to the benchmark.
- f. Provide the Agency with a report of class action settlement activity, showing any class actions opened, any class actions settled and the settlement amounts.
- g. Provide a monthly report that includes amount of assets on loan, utilization rate, revenue earned, total spread attributed to intrinsic or reinvestment spread, collateral levels, and borrower exposure.
- h. Provide a monthly report on investment characteristics of securities lending collateral.
- i. Provide a monthly report on securities lending activity and outstanding loans, including amounts by borrower.
- j. Provide regular reporting demonstrating evidence that loans made to its affiliated entities were not economically disadvantageous to the TSP and that loans were made at rates comparable to the rates for loans of similar securities to non-affiliated entities and/or are in line with market rates for such loans.
- k. Provide detailed bills covering all fees.

### **3. Quarterly Reports**

Quarterly Reports shall be submitted and include information as follows:

- a. Provide a report prepared by an independent third party assessing the compliance of the Fund with the Contractor's proxy voting policy/guidelines.
- b. Provide a report of all derivatives exposures in the Fund.
- c. If the firm is not publicly held, provide firm level quarterly financial statements that are audited and are prepared on an accrual basis of accounting by an

independent certified public accountant licensed by the Contractor's state of incorporation to perform such services.

- d. Within 60 days of any quarter end, provide quarterly securities lending and investment Fund review, including performance relative to benchmark and attribution. Also include information related to a discussion of the firm, investment staff review, process review, and other information deemed pertinent, including special topics, if any. At the option of the FRTIB, the reviews may include a conference call to discuss the review, an in-person visit of the Contractor to the Agency premises, or a submission only of the review to the FRTIB via e-mail. An annual review made as part of an annual due diligence visit to the Contractor by FRTIB staff may, at the option of the FRTIB, be combined with a quarterly review as long as performance and attribution reporting are clearly separated and identified.

#### **4. Annual Reports**

Annual Reports shall be submitted and include information as follows:

- a. Provide the FRTIB with a statement of proxy voting policies and periodic reports explaining any votes that are exceptions to stated policies. Provide updates as policies are revised.
- b. Provide evidence of fidelity bond and errors and omissions professional liability coverage.
- c. Provide current Form ADV Parts 1 and 2.
- d. Provide an annual report regarding the diversity of the Contractor's workforce in accordance with Pub. Law 111-31, Div. B, tit. I, sec. 105 to be provided to the FRTIB no later than April 30 of each year, relating to the previous calendar year.
- e. Provide annual financial statements for the separate account that are audited and reviewed by an independent third party certified public accountant licensed by the Contractor's state of incorporation to perform such services.
- f. If the firm is not publicly held, provide annual firm level financial statements that are audited and are prepared on an accrual basis of accounting by an independent certified public accountant licensed by the Contractor's state of

incorporation to perform such services.

- g. Provide the FRTIB with an annual service organization controls report (SOC 1 Type 2).
- h. Provide a report on the investment manager's use of women/minority owned brokers.
- i. Provide data on the firm's management composition as it relates to women/minorities.
- j. Provide a summary of the firm's diversity philosophy.

#### **F.4. Deliverables Management**

The Contractor shall provide the deliverables identified in Section F.3. per the schedules specified herein. If a deliverable date falls on a weekend or holiday, the Contractor shall submit the deliverable on the last business day prior to the due date. Deliverables shall be submitted to the COR in an agreed upon format.

The deliverable schedules listed below shall be reviewed and updated every year to reflect changes in policies and procedures and any applicable regulatory guidance. Days noted are business days unless 30, 60, or 90, in which case they are to be considered the last calendar day of one (1) month, two (2) months, and three (3) months respectively following the last calendar day of the reporting period.

| <b><u>Frequency</u></b> | <b><u>SOW Paragraph</u></b>                                    | <b><u>Delivery Date/Time</u></b>                                                                                                     |
|-------------------------|----------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------|
| Daily Reports           | F.3.1.a<br>F.3.1.b<br>F.3.1.c<br>F.3.1.d<br>F.3.1.e            | T+1; 3:00 pm EST<br>6:00 pm EST<br>6:00 pm EST<br>T+1: 10:00 am EST<br>T+1: 10:00 am EST<br>(Modification P0002, Effective 8/1/2022) |
| Monthly Reports         | F.3.2.a<br>F.3.2.b<br>F.3.2.c<br>F.3.2.d<br>F.3.2.e<br>F.3.2.f | M+1<br>M+1<br>M+1<br>M+10<br>M+10<br>M+10                                                                                            |

|                |                                                                                                            |                                                                              |
|----------------|------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------|
|                | F.3.2.g<br>F.3.2.h<br>F.3.2.i<br>F.3.2.j<br>F.3.2.k                                                        | M+10<br>M+10<br>M+10<br>M+10<br>M+10                                         |
| Quarterly      | F.3.3.a<br>F.3.3.b<br>F.3.3.c<br>F.3.3.d                                                                   | Q+60<br>Q+10<br>Q+60<br>Q+60                                                 |
| Annual Reports | F.3.4.a<br>F.3.4.b<br>F.3.4.c<br>F.3.4.d<br>F.3.4.e<br>F.3.4.f<br>F.3.4.g<br>F.3.4.h<br>F.3.4 i<br>F.3.4 j | Y+90<br>Y+90<br>Y+90<br>Y+90<br>Y+90<br>Y+90<br>Y+90<br>Y+90<br>Y+90<br>Y+90 |

## **Section G: Contract Administration**

### **G.1. Contracting Officer (CO)**

Responsibility for contracting activities rests solely with the FRTIB CO. The CO is responsible for directing any changes in the terms, conditions, or amounts cited in the contract. No conversation, recommendations, or direction, whether given directly by, or implied by FRTIB personnel, that will affect the scope, schedule, or price of this contract, shall be acted upon by the Contractor unless specifically approved by the FRTIB's CO. In the event that the Contractor implements changes to the contract at the direction of any person other than the CO, the Contractor will not receive reimbursement for work performed pursuant to those unauthorized changes. Contractual interpretation and assistance may be obtained by contacting the CO.

#### **G.1.1. Contracting Officer**

Name: Mark Chranowski (Contracting Officer)  
Phone Number: (202) 864-8546  
Email Address: [Mark.Chranowski@FRTIB.gov](mailto:Mark.Chranowski@FRTIB.gov)  
(Modification P0002, Effective 8/1/2022)

## **G.2. Contracting Officer's Representative (COR)**

The CO shall designate in writing a COR who is responsible for administering the performance of work under this contract by:

- a. Monitoring the Contractor's progress
- b. Assessing performance
- c. Recommending to the CO changes in requirements
- d. Interpreting the scope of work
- e. Performing inspections and acceptances of data items required by this order,
- f. Assisting the Contractor in the resolution of technical problems encountered during the performance of the order.

### **G.2.1. Contracting Officer Representative (COR)**

#### **Primary COR**

Name: Benjamin Gong  
Phone Number: (202) 639-4429  
Email Address: [Benjamin.Gong@frib.gov](mailto:Benjamin.Gong@frib.gov)

#### **Alternate COR**

Name: Michael Jerue  
Phone Number: (202) 942-1467  
Email Address: [Michael.Jerue@frib.gov](mailto:Michael.Jerue@frib.gov)

#### **Alternate COR**

Name: Jihyun (Jonathan) Ahn  
Phone Number: (b) (6)  
Email Address: [Jihyun.Ahn@frib.gov](mailto:Jihyun.Ahn@frib.gov)

(Modification P0002, Effective 8/1/2022)

### **G.3. Contract Option Periods**

Award of an initial contract will not obligate the Agency to exercise any options. Prior to exercising any option, the Agency will determine that (1) funds are available, (2) the requirement covered by the options fulfills an existing need of the Agency, and (3) exercising the option is the most advantageous method of fulfilling the Agency's needs, price and other factors considered. Failure to exercise an option will not obligate the Agency to pay any charges to the contractor or any other party.

### **G.4. Interpretation or Modification**

No verbal statement by any person, and no written statement by anyone other than the CO, or his/her authorized representative acting within the scope of his/her authority, shall be interpreted as modifying or otherwise affecting the terms of this contract. All requests for interpretation or modification shall be made in writing to the CO or Contract Specialist.

### **G.5. FRTIB Hours and Legal Holidays**

Normal business hours for FRTIB personnel are 7:30 AM to 4:30 PM Eastern Standard Time, Monday through Friday, excluding Federal holidays and official Federal Government closures in the Metropolitan DC area. The following Federal holidays are observed by the FRTIB:

(Modification P0002, Effective 8/1/2022):

| <b>Holiday</b>                                  | <b>Date</b>                 |
|-------------------------------------------------|-----------------------------|
| New Year's Day                                  | January 1, as observed      |
| Inauguration Day – National Capital Region only | January 20, as observed     |
| Martin Luther King's Birthday                   | Third Monday in January     |
| President's Day                                 | Third Monday in February    |
| Memorial Day                                    | Last Monday in May          |
| Juneteenth National Independence Day            | June 19, as observed        |
| Independence Day                                | July 4, as observed         |
| Labor Day                                       | First Monday in September   |
| Columbus Day                                    | Second Monday in October    |
| Veteran's Day                                   | November 11, as observed    |
| Thanksgiving Day                                | Fourth Thursday in November |
| Christmas Day                                   | December 25, as observed    |

In events such as a Government closing due to severe weather or security issues, the Contractor is expected to complete and send deliverables on time. If the Contractor believes there is a Government caused (potential or actual) delay in completing the tasks and deliverables stated herein, the CO and COR are to be notified immediately in writing (via email). All delays that the contractor believes are caused by the Government shall be sufficiently documented so as to provide adequate proof of the cause of delay (i.e. include names, dates, subjects).

## **Section H: Special Contract Requirements**

### **H.1 RESERVED**

### **H.2 RESERVED**

### **H.3 RESERVED**

### **H.4 RESERVED**

### **H.5 RESERVED**

## **H.6 RECORDS MANAGEMENT OBLIGATIONS**

“Federal record” as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

- (1) includes Agency records.
- (2) does not include personal materials.
- (3) applies to records created, received, or maintained by Contractors pursuant to their Agency contract.
- (4) may include deliverables and documentation associated with deliverables.

## **C. Requirements**

- (1) Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and

those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

(2) In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

(3) In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.

(4) FRTIB and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of FRTIB or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to FRTIB. The agency must report promptly to NARA in accordance with 36 CFR 1230.

(5) The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the contract vehicle. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to FRTIB control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed,

emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the contract vehicle. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

(6) The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and FRTIB guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.

(7) The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with FRTIB policy.

(8) The Contractor shall not create or maintain any records containing any non-public Agency information that are not specifically tied to or authorized by the contract.

(9) The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.

(10) The FRTIB owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which FRTIB shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.

(11) Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take FRTIB provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

[Note: To the extent an agency requires contractors to complete records management training, the agency must provide the training to the contractor.]

#### D. Flowdown of requirements to subcontractors

(1) The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this contract vehicle, and require written subcontractor acknowledgment of same.

(2) Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

(End Clause)

**H.7 RESERVED**

**H.8 RESERVED**

**H.9 RESERVED**

**H.10 RESERVED**

**H.11 CONTRACTOR REQUIREMENTS, CONFIDENTIALITY AND NON-DISCLOSURE**

(a) Contractor personnel will have access to some privileged and confidential materials of the FRTIB.

These printed and electronic documents are for internal use only, are not to be copied or released without permission, and remain the sole property of the FRTIB. The contractor will not have access to PII or FRTIB information systems.

**H.12 RESERVED**

**H.13 CLASS ACTION SECURITIES LITIGATION PROOF OF CLAIMS PROCESSING**

a) Contractor shall exercise reasonable diligence to actively identify and monitor all domestic class action litigation relating to securities held by the Contractor on behalf of the Thrift Savings Fund during the relevant class period.

(b) Subject to paragraph (e), Contractor will prepare and submit claims and supporting documentation in respect of any and all domestic class action litigation to which the Thrift Savings Fund has exposure held by the Contractor on behalf of the Thrift Savings Fund.

(c) Contractor will respond to inquiries from claims administrators arising from the Thrift Savings Fund's participation in class action litigation and make changes to the filings of claims forms as needed to address such inquiries. Where additional information is required to prepare and submit claims, the Contractor will contact the FRTIB as soon as reasonably practicable.

(d) Contractor will credit the Thrift Savings Fund upon receipt of claim proceeds from the administrator as soon as reasonably practicable.

(e) At least 45 business days before the expiration of a statute of repose or any opt-out deadline for any domestic class action to which FRTIB has exposure, Contractor shall notify the FRTIB.

(f) The FRTIB shall notify the Contractor at least 14 calendar days before the claims filing deadline if the FRTIB does not wish the Contractor to proceed with filing a claim.

(g) The Contractor shall make available to the FRTIB, and to any third party securities litigation monitoring firm providing securities litigation monitoring services to the FRTIB, the following:

(1) Upon request, a transaction feed containing all positions/holdings of all market purchases and sales of securities held by the Contractor on behalf of the Thrift Savings Fund. The file must be provided in a delimited editable format and contain, at a minimum: transaction type and related codes, trade and settlement dates, price per security, and quantity.

(2) A monthly report of each class action identified by the Contractor, which includes (as applicable): the name of the action, the date a claim was submitted on the Thrift Savings Fund's behalf; the amount received; and the date monies were credited to the Thrift Savings Fund.

(3) Upon request, written documentation of the Contractor's procedures for monitoring and identifying class action litigation relating to securities held by the Contractor on behalf of the Thrift Savings Fund during the relevant class period.

#### **H.14 ADDITIONAL DISCLOSURES**

(a) Upon request, the contractor will disclose to the FRTIB the amount of any gains, revenue, or remuneration received by the contractor or any of its affiliates from any source or party if the gains, revenue, or remuneration would not be received but for the contractor providing services under this contract.

(b) Upon request, the contractor will provide the FRTIB with a detailed description of its methodology for calculating securities lending income and will disclose all amounts that are netted from securities lending income.

#### **H.15 PLAN ASSETS**

All custody accounts, deposit accounts, omnibus accounts, subaccounts, or any other accounts used in the course of providing services under this contract are plan assets.

#### **Section I: Contract Clauses**

The Federal Retirement Thrift Investment Board is a federal independent agency operating with non-appropriated funds. Selected statutory language contained in the FAR applies to this procurement, and is incorporated below and throughout the contract.

## 1. Clauses Incorporated by Reference

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Procuring Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

<https://acquisition.gov/far/index.html>

<https://acquisition.gov/gsam/gsam.html>

| Clauses Incorporated By Reference |                                                                                                                         |           |
|-----------------------------------|-------------------------------------------------------------------------------------------------------------------------|-----------|
| Clause                            | Title                                                                                                                   | Date      |
| 52.202.1                          | Definitions                                                                                                             | NOV 2013  |
| 52.203-3                          | Gratuities                                                                                                              | APR 1994  |
| 52.204-21                         | Basic Safeguarding of Covered Contractor Information Systems                                                            | JUN 2016  |
| 52.204-7                          | System of Award Management                                                                                              | OCT 2018  |
| 52.209-6                          | Protecting the Governments interest when subcontracting with Contractors debarred, suspended, or proposed for debarment | OCT 2015  |
| 52.212-4                          | Contract Terms And Conditions—Commercial Items                                                                          | SEPT 2013 |
| 52.233-3                          | Protest After Award                                                                                                     | AUG 1996  |
| 52.233-4                          | Applicable Law for Breach of Contract Claim                                                                             | OCT 2004  |
| 52.242-13                         | Bankruptcy                                                                                                              | JUL 1995  |
| 52.253-1                          | Computer Generated Forms                                                                                                | JAN 1991  |

## 2. Clauses Incorporated by Full Text

**FAR 52.203-13 Contractor Code of Business Ethics and Conduct (October 2015)**

(a) Definitions. As used in this clause—

“Agent” means any individual, including a director, an officer, an employee, or an independent Contractor, authorized to act on behalf of the organization.

“Full cooperation”—

(1) Means disclosure to the Government of the information sufficient for law enforcement to identify the nature and extent of the offense and the individuals responsible for the conduct. It includes providing timely and complete response to Government auditors' and investigators' request for documents and access to employees with information;

(2) Does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not require—

(i) A Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine; or

(ii) Any officer, director, owner, or employee of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; and

(3) Does not restrict a Contractor from—

(i) Conducting an internal investigation; or

(ii) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

“Subcontract” means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

“Subcontractor” means any supplier, distributor, vendor, or firm that furnished supplies or services to or for a prime contractor or another subcontractor.

“United States,” means the 50 States, the District of Columbia, and outlying areas.

(b) Code of business ethics and conduct.

(1) Within 30 days after contract award, unless the Contracting Officer establishes a longer time period, the Contractor shall—

(i) Have a written code of business ethics and conduct;

(ii) Make a copy of the code available to each employee engaged in performance of the contract.

(2) The Contractor shall—

(i) Exercise due diligence to prevent and detect criminal conduct; and

(ii) Otherwise promote an organizational culture that encourages ethical conduct and a commitment to compliance with the law.

(3)(i) The Contractor shall timely disclose, in writing, to the agency Office of the Inspector General (OIG), with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed—

(A) A violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code; or

(B) A violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(ii) The Government, to the extent permitted by law and regulation, will safeguard and treat information obtained pursuant to the Contractor's disclosure as confidential where the information has been marked "confidential" or "proprietary" by the company. To the extent permitted by law and regulation, such information will not be released by the Government to the public pursuant to a Freedom of Information Act request, 5 U.S.C. Section 552, without prior notification to the Contractor. The Government may transfer documents provided by the Contractor to any department or agency within the Executive Branch if the information relates to matters within the organization's jurisdiction.

(iii) If the violation relates to an order against a Government-wide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the Contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract.

(c) Business ethics awareness and compliance program and internal control system. This paragraph (c) does not apply if the Contractor has represented itself as a small business concern pursuant to the award of this contract or if this contract is for the acquisition of a commercial item as defined at FAR 2.101. The Contractor shall establish the following within 90 days after contract award, unless the Contracting Officer establishes a longer time period:

(1) An ongoing business ethics awareness and compliance program.

(i) This program shall include reasonable steps to communicate periodically and in a practical manner the Contractor's standards and procedures and other aspects of the Contractor's business ethics awareness and compliance program and internal control system, by conducting effective training programs and otherwise disseminating information appropriate to an individual's respective roles and responsibilities.

(ii) The training conducted under this program shall be provided to the Contractor's principals and employees, and as appropriate, the Contractor's agents and subcontractors.

(2) An internal control system.

(i) The Contractor's internal control system shall—

(A) Establish standards and procedures to facilitate timely discovery of improper conduct in connection with Government contracts; and

(B) Ensure corrective measures are promptly instituted and carried out.

(ii) At a minimum, the Contractor's internal control system shall provide for the following:

(A) Assignment of responsibility at a sufficiently high level and adequate resources to ensure effectiveness of the business ethics awareness and compliance program and internal control system.

(B) Reasonable efforts not to include an individual as a principal, whom due diligence would have exposed as having engaged in conduct that is in conflict with the Contractor's code of business ethics and conduct.

(C) Periodic reviews of company business practices, procedures, policies, and internal controls for compliance with the Contractor's code of business ethics and conduct and the special requirements of Government contracting, including—

(1) Monitoring and auditing to detect criminal conduct;

(2) Periodic evaluation of the effectiveness of the business ethics awareness and compliance program and internal control system, especially if criminal conduct has been detected; and

(3) Periodic assessment of the risk of criminal conduct, with appropriate steps to design, implement, or modify the business ethics awareness and compliance program and the internal control system as necessary to reduce the risk of criminal conduct identified through this process.

(D) An internal reporting mechanism, such as a hotline, which allows for anonymity or confidentiality, by which employees may report suspected instances of improper conduct, and instructions that encourage employees to make such reports.

(E) Disciplinary action for improper conduct or for failing to take reasonable steps to prevent or detect improper conduct.

(F) Timely disclosure, in writing, to the agency OIG, with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of any Government contract performed by the Contractor or a subcontractor thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 U.S.C. or a violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(1) If a violation relates to more than one Government contract, the Contractor may make the disclosure to the agency OIG and Contracting Officer responsible for the largest dollar value contract impacted by the violation.

(2) If the violation relates to an order against a Government wide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract, and the respective agencies' contracting officers.

(3) The disclosure requirement for an individual contract continues until at least 3 years after final payment on the contract.

(4) The Government will safeguard such disclosures in accordance with paragraph (b)(3)(ii) of this clause.

(G) Full cooperation with any Government agencies responsible for audits, investigations, or corrective actions.

(d) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts that have a value in excess of \$5.5 million and a performance period of more than 120 days.

(2) In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(End Clause)

**52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (AUG 2020)**

(a) *Definitions.* As used in this clause—

*Backhaul* means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

*Covered foreign country* means The People's Republic of China.

*Covered telecommunications equipment or services* means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

*Critical technology* means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

*Interconnection arrangements* means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

*Reasonable inquiry* means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

*Roaming* means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

*Substantial or essential component* means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR [4.2104](#).

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR [4.2104](#). This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) *Exceptions.* This clause does not prohibit contractors from providing—

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) *Reporting requirement.*

(1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the

website at <https://dibnet.dod.mil>. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil>.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause

(i) Within one business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial items.

(End of clause)

**FAR 52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders – Commercial Items (Oct 2020) [FAR CLAUSE CONTENTS MODIFIED TO REMOVE ALL FAR CLAUSES NOT CHECKED AS APPROPRIATE]**

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

(1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (JUL 2018) (Section 1634 of Pub. L. 115-91).

(3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) [52.233-3](#), Protest After Award (AUG 1996) ([31 U.S.C. 3553](#)).

(6) [52.233-4](#), Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 ( [19 U.S.C. 3805 note](#))).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

X (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (JUNE 2020), with *Alternate I* (OCT 1995) ([41 U.S.C. 4704](#) and [10 U.S.C. 2402](#)).

X (8) [52.209-6](#), Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (JUN 2020) ([31 U.S.C. 6101 note](#)).

X (9) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) ([41 U.S.C. 2313](#)).

X (29) [52.222-21](#), Prohibition of Segregated Facilities (APR 2015).

X (30) (i) [52.222-26](#), Equal Opportunity (SEP 2016) (E.O.11246).

X (31) (i) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).

X (32) (i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).

X (33) [52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).

X (34) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

X (44) [52.223-18](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020) (E.O. 13513).

X (48) [52.225-1](#), Buy American-Supplies (May 2014) ([41 U.S.C. chapter 83](#)).

X (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (JUN 2008) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

X (61) [52.239-1](#), Privacy or Security Safeguards (AUG 1996) ([5 U.S.C. 552a](#)).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

X (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that

the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (JUN 2020) ([41 U.S.C. 3509](#)).

(ii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (JUL 2018) (Section 1634 of Pub. L. 115-91).

(iv) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(v) [52.219-8](#), Utilization of Small Business Concerns (OCT 2018) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(vi) [52.222-21](#), Prohibition of Segregated Facilities (APR 2015).

(vii) [52.222-26](#), Equal Opportunity (SEP 2015) (E.O.11246).

(viii) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).

(ix) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).

(x) [52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).

(xi) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xii) [52.222-41](#), Service Contract Labor Standards (Aug2018) ([41 U.S.C. chapter 67](#)).

(xiii) (A) [52.222-50](#), Combating Trafficking in Persons (OCT 2020) ([22 U.S.C. chapter 78](#) and E.O 13627).

(B) Alternate I (Mar2015) of 52.222-50 (22 U.S.C chapter 78 and E.O. 13627).

(xiv) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May2014) ([41 U.S.C. chapter 67](#)).

(xv) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY2014) ([41 U.S.C. chapter 67](#)).

(xvi) [52.222-54](#), Employment Eligibility Verification (OCT 2015) (E.O. 12989).

(xvii) [52.222-55](#), Minimum Wages Under Executive Order 13658 (DEC 2015).

(xviii) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

(xix) (A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (JAN 2017) of [52.224-3](#).

(xx) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; [10 U.S.C. 2302 Note](#)).

(xxi) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) ([42 U.S.C. 1792](#)). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (FEB 2006) ([46 U.S.C. Appx. 1241\(b\)](#) and [10 U.S.C. 2631](#)). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

#### **FAR 52.217-8 Option to Extend Services (Nov 1999)**

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within sixty (60) days prior to contract expiration.

#### **FAR 52.217-9 Option to Extend the Term of the Contract (MAR 2000)**

- (a) The Government may extend the term of this contract by written notice to the Contractor within 30 calendar days prior to contract expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 calendar days before the contract expires. The preliminary notice does not commit the Government to an extension.
- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 126 months.

#### **FAR 52.233-1 Disputes (May 2014)**

- (a) This contract is subject to 41 U.S.C. chapter 71, Contract Disputes.
- (b) Except as provided in 41 U.S.C. chapter 71, all disputes arising under or relating to this contract shall be resolved under this clause.
- (c) "Claim," as used in this clause, means a written demand or written assertion by one of the contracting parties seeking, as a matter of right, the payment of money in a sum

certain, the adjustment or interpretation of contract terms, or other relief arising under or relating to this contract. However, a written demand or written assertion by the Contractor seeking the payment of money exceeding \$100,000 is not a claim under 41 U.S.C. chapter 71 until certified. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under 41 U.S.C. chapter 71. The submission may be converted to a claim under 41 U.S.C. chapter 71, by complying with the submission and certification requirements of this clause, if it is disputed either as to liability or amount or is not acted upon in a reasonable time.

(d)

(1) A claim by the Contractor shall be made in writing and, unless otherwise stated in this contract, submitted within 6 years after accrual of the claim to the Contracting Officer for a written decision. A claim by the Government against the Contractor shall be subject to a written decision by the Contracting Officer.

(2)

(i) The contractor shall provide the certification specified in paragraph (d)(2)(iii) of this clause when submitting any claim exceeding \$100,000.

(ii) The certification requirement does not apply to issues in controversy that have not been submitted as all or part of a claim.

(iii) The certification shall state as follows: "I certify that the claim is made in good faith; that the supporting data are accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the contract adjustment for which the Contractor believes the Government is liable; and that I am authorized to certify the claim on behalf of the Contractor."

(3) The certification may be executed by any person authorized to bind the Contractor with respect to the claim.

(e) For Contractor claims of \$100,000 or less, the Contracting Officer must, if requested in writing by the Contractor, render a decision within 60 days of the request. For Contractor-certified claims over \$100,000, the Contracting Officer must, within 60 days, decide the claim or notify the Contractor of the date by which the decision will be made.

(f) The Contracting Officer's decision shall be final unless the Contractor appeals or files a suit as provided in 41 U.S.C. chapter 71.

(g) If the claim by the Contractor is submitted to the Contracting Officer or a claim by the Government is presented to the Contractor, the parties, by mutual consent, may agree to use alternative dispute resolution (ADR). If the Contractor refuses an offer for ADR, the Contractor shall inform the Contracting Officer, in writing, of the Contractor's specific reasons for rejecting the offer.

- (h) The Government shall pay interest on the amount found due and unpaid from
- (1) the date that the Contracting Officer receives the claim (certified, if required);
- or
- (2) the date that payment otherwise would be due, if that date is later, until the date of payment.

With regard to claims having defective certifications, as defined in FAR 33.201, interest shall be paid from the date that the Contracting Officer initially receives the claim. Simple interest on claims shall be paid at the rate, fixed by the Secretary of the Treasury as provided in the Act, which is applicable to the period during which the Contracting Officer receives the claim and then at the rate applicable for each 6-month period as fixed by the Treasury Secretary during the pendency of the claim.

(i) The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract, and comply with any decision of the Contracting Officer.

(End of Clause)

Alternate I (Dec 1991). As prescribed in 33.215, substitute the following paragraph (i) for the paragraph (i) of the basic clause:

(i) The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under or relating to the contract, and comply with any decision of the Contracting Officer.

#### **Section J: List of Attachments**

| <b>Attachment Number</b> | <b>Title</b>                                                                                                                     |
|--------------------------|----------------------------------------------------------------------------------------------------------------------------------|
| 001                      | Allocation of Fiduciary Duty Form                                                                                                |
| 002                      | Non-Disclosure Agreement (Contractor)                                                                                            |
| 003                      | Investment Management Services Agreement (IMSA - inclusive of Appendices, Exhibits, Schedules, Annex's, and attachments therein) |
| 004                      | FRTIB Incident Response Policy                                                                                                   |
| 005                      | FRTIB Error Remediation Procedures                                                                                               |

|                                                                                                                                                               |  |                                                                                                              |  |                                                            |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--------------------------------------------------------------------------------------------------------------|--|------------------------------------------------------------|--|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                                                                                                     |  | 1. CONTRACT ID CODE                                                                                          |  | PAGE OF PAGES<br>1 3                                       |  |
| 2. AMENDMENT/MODIFICATION NO.<br>P0003                                                                                                                        |  | 3. EFFECTIVE DATE<br>10/18/2022<br>SEE BLOCK 16C                                                             |  | 4. REQUISITION/PURCHASE REQ. NO.                           |  |
| 6. ISSUED BY<br>FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002                                                                               |  | CODE<br>OED_ACQ_MGT_DIV I                                                                                    |  | 5. PROJECT NO. (If applicable)                             |  |
|                                                                                                                                                               |  | 7. ADMINISTERED BY (If other than Item 6)<br>FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002 |  | CODE<br>OED_ACQ_MGT_DIV AI                                 |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)<br>STATE STREET GLOBAL ADVISORS TRUST COMPANY<br>1 IRON ST<br>BOSTON MA 022101641 |  | (X)                                                                                                          |  | 9A. AMENDMENT OF SOLICITATION NO.                          |  |
|                                                                                                                                                               |  |                                                                                                              |  | 9B. DATED (SEE ITEM 11)                                    |  |
|                                                                                                                                                               |  | X                                                                                                            |  | 10A. MODIFICATION OF CONTRACT/ORDER NO.<br>TIB-2021-C-0001 |  |
|                                                                                                                                                               |  |                                                                                                              |  | 10B. DATED (SEE ITEM 13)<br>12/31/2021                     |  |
| CODE 1000038596                                                                                                                                               |  | FACILITY CODE                                                                                                |  |                                                            |  |

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

- ☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☐ is not extended.  
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

**12. ACCOUNTING AND APPROPRIATION DATA (If required)**

See Schedule

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

|           |                                                                                                                                                                                                                       |
|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.                                                                      |
|           | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| X         | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:<br>52.217-9 Option to Extend the Term of the Contract                                                                                        |
|           | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

**E. IMPORTANT:** Contractor ☒ is not, ☐ is required to sign this document and return \_\_\_\_\_ copies to the issuing office.**14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)**

The purpose of this modification is to exercise Option Period One (1) of the subject contract.

1. Option Period One (1) is hereby exercised with a Period of Performance of October 21, 2022 through October 20, 2024.



Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                                          |  |                                                                                                   |  |
|----------------------------------------------------------|--|---------------------------------------------------------------------------------------------------|--|
| 15A. NAME AND TITLE OF SIGNER (Type or print)<br>(b) (6) |  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)<br>Mark A. Chranowski                  |  |
|                                                          |  | TEL: EMAIL: Mark.Chranowski@FRTIB.GOV                                                             |  |
| 15B. DATE SIGNED<br>(b) (6)                              |  | 16B. DATE SIGNED<br>10/18/2022                                                                    |  |
| 10/18/2022                                               |  | 16C. DATE SIGNED<br>10/18/2022                                                                    |  |
|                                                          |  | 16D. SIGNATURE OF CONTRACTING OFFICER<br>Mark A. Chranowski<br>(Signature of Contracting Officer) |  |

## CONTINUATION SHEET

REFERENCE NO. OF DOCUMENT BEING CONTINUED  
TIB-2021-C-0001/P0003

PAGE 2 OF 3

NAME OF OFFEROR OR CONTRACTOR

STATE STREET GLOBAL ADVISORS TRUST COMPANY

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B)                                                                                                                       | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------|-------------------|---------------|
|                 |                                                               |                 |             |                   |               |
|                 | All other terms & conditions remain unchanged and in full force & effect.                                                                      |                 |             |                   |               |
|                 | Period of Performance: 10/21/2022 to 10/20/2024                                                                                                |                 |             |                   |               |
| 6               | CLIN 1001<br>Investment Management, Securities Lending, and Custody and Administrative Services<br>Option Period 1<br>Obligated Amount: \$0.00 |                 |             |                   | 0.00          |
| 7               | CLIN 1001-A<br>F-Fund in accordance with Section J - Attachment 003: Schedule A<br>Option Period 1<br>Obligated Amount: \$0.00                 | 24              | MO          | 0.00              | 0.00          |
| 8               | CLIN 1001-B<br>C-Fund in accordance with Section J - Attachment 003: Schedule A<br>Option Period 1<br>Obligated Amount: \$0.00                 | 24              | MO          | 0.00              | 0.00          |
| 9               | CLIN 1001-C<br>S-Fund in accordance with Section J - Attachment 003: Schedule A<br>Option Period 1<br>Obligated Amount: \$0.00                 | 24              | MO          | 0.00              | 0.00          |
| 10              | CLIN 1001-D<br>I-Fund in accordance with Section J - Attachment Continued ...                                                                  | 24              | MO          | 0.00              | 0.00          |

NAME OF OFFEROR OR CONTRACTOR  
STATE STREET GLOBAL ADVISORS TRUST COMPANY

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B)                                       | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|----------------------------------------------------------------|-----------------|-------------|-------------------|---------------|
|                 | 003: Schedule A<br>Option Period 1<br>Obligated Amount: \$0.00 |                 |             |                   |               |

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------|--|------------------------------------------------------------|--|
| AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                       | 1. CONTRACT ID CODE                                        |  | PAGE OF PAGES                                              |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                       |                                                            |  | 13                                                         |  |
| 2. AMENDMENT/MODIFICATION NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                       | 3. EFFECTIVE DATE                                          |  | 4. REQUISITION/PURCHASE REQ. NO.                           |  |
| P0004                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                       | See Block 16C                                              |  | PR-24-OI-0025                                              |  |
| 6. ISSUED BY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                       | CODE                                                       |  | 5. PROJECT NO. (If applicable)                             |  |
| FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                       | OED_ACQ_MGT_DIV I                                          |  | CODE OED_ACQ_MGT_DIV AI                                    |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                       | (x)                                                        |  | 9A. AMENDMENT OF SOLICITATION NO.                          |  |
| STATE STREET GLOBAL ADVISORS TRUST COMPANY<br>1 IRON ST<br>BOSTON MA 022101641                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                       |                                                            |  | 9B. DATED (SEE ITEM 11)                                    |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                       | X                                                          |  | 10A. MODIFICATION OF CONTRACT/ORDER NO.<br>TIB-2021-C-0001 |  |
| CODE 1000038596                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                       | FACILITY CODE                                              |  | 10B. DATED (SEE ITEM 13)<br>12/31/2021                     |  |
| 11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| <input type="checkbox"/> The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers <input type="checkbox"/> is extended. <input type="checkbox"/> is not extended.<br>Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified. |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| 12. ACCOUNTING AND APPROPRIATION DATA (If required)<br>See Schedule                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| 13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| CHECK ONE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.                                                                      |                                                            |  |                                                            |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |                                                            |  |                                                            |  |
| X                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:<br>52.217-9 Option to Extend the Term of the Contract                                                                                        |                                                            |  |                                                            |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |                                                            |  |                                                            |  |
| E. IMPORTANT: Contractor <input type="checkbox"/> is not. <input checked="" type="checkbox"/> is required to sign this document and return 1 copies to the issuing office.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| 14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| The purpose of this modification is to exercise Option Period Two (2) of the subject contract in accordance with FAR 52.217-9 and to update the Contracting Officer information identified in Section G.1.1.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| 1. Option Period Two (2) is hereby exercised with a Period of Performance of October 21, 2024 through October 20, 2026.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| 2. CLINs 2001, 2001A, 2001B, 2001C & 2001D are exercised with Section J, Attachment 003, Appendix B, Schedule A to Exhibit 5 of this contract (As of Modification P0002 dtd. 27 July 2022).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| Continued ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                       |                                                            |  |                                                            |  |
| 15A. NAME AND TITLE OF SIGNER (Type or print)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                       | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) |  |                                                            |  |
| (b) (6)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                       | Lashondria U. Barber                                       |  |                                                            |  |
| 15B. CONTRACTOR/OFFEROR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                       | 15C. DATE SIGNED                                           |  | 16B. UNITED STATES OF AMERICA                              |  |
| (b) (6)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                       | 9/16/2024                                                  |  | 16C. DATE SIGNED                                           |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                       |                                                            |  | Date: 2024.09.19 07:58:38 -04'00'                          |  |
| NSN 7540-01-152-80-0                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                       |                                                            |  | STANDARD FORM 30 (REV. 10-83)                              |  |
| Previous edition unusable                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                       |                                                            |  | Prescribed by GSA                                          |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                       |                                                            |  | FAR (48 CFR) 53.243                                        |  |

|                    |                                                                    |      |    |
|--------------------|--------------------------------------------------------------------|------|----|
| CONTINUATION SHEET | REFERENCE NO. OF DOCUMENT BEING CONTINUED<br>TIB-2021-C-0001/P0004 | PAGE | OF |
|                    |                                                                    | 2    | 3  |

NAME OF OFFEROR OR CONTRACTOR

STATE STREET GLOBAL ADVISORS TRUST COMPANY

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B)                                                                                                                                                                                          | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------|-------------------|---------------|
|                 | <p>3. The Contracting Officer is changed from Mark Chranowski to Lashondria Barber - Lashondria.Barber@FRTIB.gov.</p> <p>4. All other terms &amp; conditions remain unchanged and in full force &amp; effect.</p> |                 |             |                   |               |
|                 | Period of Performance: 10/21/2024 to 10/20/2026                                                                                                                                                                   |                 |             |                   |               |
| 11              | <p>CLIN 2001</p> <p>Investment Management, Securities Lending, and Custody and Administrative Services</p> <p>Option Period 2</p> <p>Obligated Amount: \$0.00</p>                                                 |                 |             |                   | 0.00          |
| 12              | <p>CLIN 2001-A</p> <p>F-Fund in accordance with Section J - Attachment 003: Schedule A</p> <p>Option Period 2</p> <p>Obligated Amount: \$0.00</p>                                                                 | 24              | MO          | 0.00              | 0.00          |
| 13              | <p>CLIN 2001-B</p> <p>C-Fund in accordance with Section J - Attachment 003: Schedule A</p> <p>Option Period 2</p> <p>Obligated Amount: \$0.00</p>                                                                 | 24              | MO          | 0.00              | 0.00          |
| 14              | <p>CLIN 2001-C</p> <p>S-Fund in accordance with Section J - Attachment 003: Schedule A</p> <p>Option Period 2</p> <p>Obligated Amount: \$0.00</p>                                                                 | 24              | MO          | 0.00              | 0.00          |
| 15              | <p>CLIN 2001-D</p> <p>I-Fund in accordance with Section J - Attachment 003: Schedule A</p> <p>Option Period 2</p> <p>Obligated Amount: \$0.00</p> <p>Continued ...</p>                                            | 24              | MO          | 0.00              | 0.00          |

NAME OF OFFEROR OR CONTRACTOR  
STATE STREET GLOBAL ADVISORS TRUST COMPANY

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B) | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|--------------------------|-----------------|-------------|-------------------|---------------|
|                 |                          |                 |             |                   |               |

|                                                                                                                                                               |  |                                                                                 |  |                                                                                                              |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|--|---------------------------------------------------------------------------------|--|--------------------------------------------------------------------------------------------------------------|--|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                                                                                                     |  | 1. CONTRACT ID CODE                                                             |  | PAGE OF PAGES<br>1 2                                                                                         |  |
| 2. AMENDMENT/MODIFICATION NO.<br>P0005                                                                                                                        |  | 3. EFFECTIVE DATE<br>See Block 16C                                              |  | 4. REQUISITION/PURCHASE REQ. NO.                                                                             |  |
| 5. PROJECT NO. (If applicable)                                                                                                                                |  | 6. ISSUED BY<br>FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002 |  | 7. ADMINISTERED BY (If other than Item 6)<br>FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002 |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)<br>STATE STREET GLOBAL ADVISORS TRUST COMPANY<br>1 IRON ST<br>BOSTON MA 022101641 |  | 9A. AMENDMENT OF SOLICITATION NO.                                               |  | 9B. DATED (SEE ITEM 11)                                                                                      |  |
| CODE 1000038596 FACILITY CODE                                                                                                                                 |  | 10A. MODIFICATION OF CONTRACT/ORDER NO.<br>TIB-2021-C-0001                      |  | 10B. DATED (SEE ITEM 13)<br>12/31/2021                                                                       |  |

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☐ is not extended.  
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

See Schedule

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

|           |                                                                                                                                                                                                                       |
|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.                                                                      |
|           | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
|           | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:                                                                                                                                              |
| X         | D. OTHER (Specify type of modification and authority)<br>FAR 52.212-4(c) - Changes                                                                                                                                    |

E. IMPORTANT: Contractor ☒ is not, ☐ is required to sign this document and return \_\_\_\_\_ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

The purpose of this modification is to remove items "h through j" of the Annual Report deliverables from Section F.3.4 of the subject contract.

1. Item h. "Provide a report on the investment manager's use of women/minority owned brokers" is hereby removed from Section F.3.4 as an annual report deliverable.

2. Item i. "Provide data on the firm's management composition as it relates to women/minorities" is hereby removed from Section F.3.4 as an annual report deliverable.

3. Item j. "Provide a summary of the firm's diversity philosophy" is hereby removed from Section F.3.4 as an annual report deliverable.

Continued ...

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                                                       |  |                                                                                 |  |
|-----------------------------------------------------------------------|--|---------------------------------------------------------------------------------|--|
| 15A. NAME AND TITLE OF SIGNER (Type or print)<br>Lashondria U. Barber |  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)<br>LASHONDRIA BARBER |  |
| 15B. CONTRACTOR/OFFEROR<br>(Signature of person authorized to sign)   |  | 16B. UNITED STATES OF AMERICA<br>(Signature of Contracting Officer)             |  |
| 15C. DATE SIGNED                                                      |  | 16C. DATE SIGNED<br>Date: 2025.02.27 11:46:18<br>-05'00'                        |  |

NAME OF OFFEROR OR CONTRACTOR  
STATE STREET GLOBAL ADVISORS TRUST COMPANY

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B)                                                                              | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|-------------------------------------------------------------------------------------------------------|-----------------|-------------|-------------------|---------------|
|                 | 4. This action is being executed unilaterally.<br><br>Period of Performance: 10/21/2024 to 10/20/2026 |                 |             |                   |               |

|                                                                                                                                                               |  |                                                                                 |  |                                                                                                              |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|--|---------------------------------------------------------------------------------|--|--------------------------------------------------------------------------------------------------------------|--|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                                                                                                     |  | 1. CONTRACT ID CODE                                                             |  | PAGE OF PAGES<br>1 2                                                                                         |  |
| 2. AMENDMENT/MODIFICATION NO.<br>P0006                                                                                                                        |  | 3. EFFECTIVE DATE<br>See Block 16C                                              |  | 4. REQUISITION/PURCHASE REQ. NO.                                                                             |  |
| 5. PROJECT NO. (If applicable)                                                                                                                                |  | 6. ISSUED BY<br>FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002 |  | 7. ADMINISTERED BY (If other than Item 6)<br>FRTIB<br>77 K Street NE<br>Suite 1000<br>Washington DC DC 20002 |  |
| CODE                                                                                                                                                          |  | OCFO_ACQ_MGT_DIV                                                                |  | CODE OCFO_ACQ_MGT_DIV 1                                                                                      |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)<br>STATE STREET GLOBAL ADVISORS TRUST COMPANY<br>1 IRON ST<br>BOSTON MA 022101641 |  | (X)                                                                             |  | 9A. AMENDMENT OF SOLICITATION NO.                                                                            |  |
| CODE 1000038596                                                                                                                                               |  | FACILITY CODE                                                                   |  | 9B. DATED (SEE ITEM 11)                                                                                      |  |
|                                                                                                                                                               |  | X                                                                               |  | 10A. MODIFICATION OF CONTRACT/ORDER NO.<br>TIB-2021-C-0001                                                   |  |
|                                                                                                                                                               |  |                                                                                 |  | 10B. DATED (SEE ITEM 13)<br>12/31/2021                                                                       |  |

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☐ is not extended.  
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

See Schedule

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

|           |                                                                                                                                                                                                                       |
|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.                                                                      |
|           | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| X         | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:<br>FAR 52.212-4 (c) Changes                                                                                                                  |
|           | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

E. IMPORTANT: Contractor ☐ is not, ☒ is required to sign this document and return 1 copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

The purpose of this modification is to add FAR Clause 52.222-90, "Addressing DEI Discrimination by Federal Contractors," Executive Order (EO) 14398.

Period of Performance: 04/01/2026 to 10/20/2026

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                                          |  |                                                                                    |  |
|----------------------------------------------------------|--|------------------------------------------------------------------------------------|--|
| 15A. NAME AND TITLE OF SIGNER (Type or print)<br>(b) (6) |  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)<br>Lashondria U. Barber |  |
| 15B. CONTRACTING OFFICER'S SIGNATURE<br>(b) (6)          |  | 16B. UNITED STATES OF AMERICA<br>LASHONDRIA BARBER                                 |  |
| 15C. DATE SIGNED                                         |  | 16C. DATE SIGNED<br>Date: 2026.07.22 08:16:04 -04'00'                              |  |

**52.222-90 Addressing DEI Discrimination by Federal Contractors** (April 2026)

(a) *Definitions.* As used in this clause—

*Program participation* means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

*Racially discriminatory diversity, equity, and inclusion (DEI) activities* means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
  - (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
  - (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
  - (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
  - (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
  - (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).
- (c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of Clause)